CONSTITUTION OF GOTABGAA AUSTRALIA LIMITED

A Public Company Limited by Guarantee

Adopted by special resolution of the membership Updated on Date at **GOTABGAA** AGM

ACKNOWLEDGMENT OF COUNTRY

GOTABGAA Australia Limited acknowledges the Traditional Owners of the lands in which it operates and pays its respect to Elders past and present. **GOTABGAA** is committed to reconciliation with Aboriginal and Torres Strait Islander peoples and seeks to operate in a spirit of respect, cooperation and unity with Australia's First Peoples.

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ARTICLE 1 — NAME, STATUS AND REGISTERED OFFICE

1.1 Name

1.1.1 The name of the incorporation is **GOTABGAA Australia Limited.**

1.1.2 **GOTABGAA Australia Limited** is a national community organisation being established to unite and provide a common platform for Kalenjin people living in Australia.

1.1.3 **GOTABGAA Australia Limited** will promote unity, cultural identity, participation and positive community development while recognising Australia as a multicultural and diverse society. Membership of Gotabgaa Australia will be individual based.

1.2 Public Company Limited by Guarantee

Section 9 of the **Corporations Act 2001 (Cth)** defines a Public Company Limited by Guarantee as a company in which the liability of members is limited to the amount each member undertakes to contribute to Gotabgaa Australia Limited 's property if Gotabgaa Australia Limited is wound up.

Section 254 SA indicates that Gotabgaa Australia **does not have the power to issue shares**. Its members' liability instead arises from their guarantee.

1.3 Registered Office Australia

Not yet

1.4 Principal Place of Business Australia

Not Yet

1.5 National Operation Australia

Not yet

1.6 Official Language

The official language of communication will be English/Kalenjin /Swahili with the aim of protecting the members' cultural identity and acknowledge the cultural diversity in Australia.

ARTICLE 2 — VISION, MISSION AND CORE VALUES

2.1 Vision

A united, vibrant and empowered Kalenjin community contributing positively to Australian society while preserving and promoting Kalenjin identity, culture, language and heritage.

2.2 Mission

2.2.1. GOTABGAA Australia Limited is committed to uniting and strengthening the Kalenjin community across Australia by providing an inclusive national platform that celebrates and preserves Kalenjin culture, language, heritage and traditions while fostering a strong sense of identity, belonging and community.

2.2.2 GOTABGAA Australia Limited shall promote economic participation, entrepreneurship, employment and business development; create opportunities for networking, education, professional development and community participation; and empower young people and women to actively contribute through leadership, sport, innovation and community development.

2.2.3 GOTABGAA Australia Limited encourages cooperation, collaboration and mutual support among Kalenjin communities throughout Australia, while providing appropriate and constructive mechanisms for resolving internal community disputes.

2.2.4 GOTABGAA Australia Limited shall build positive, respectful and meaningful relationships between the Kalenjin community and the broader Australian community.

2.3 Core Values

2.3. 1 Unity and Solidarity

Building a connected Kalenjin community founded on mutual support, cooperation and collective responsibility.

2.3. 2 Cultural Identity and Heritage

Preserving, promoting and celebrating Kalenjin language, culture, traditions and heritage while embracing Australia's multicultural society.

2.3. 3 Inclusion and Equality

Ensuring that women, youth, families, elders and people from diverse backgrounds have meaningful opportunities to participate and contribute.

2.3. 4 Empowerment and Leadership

Developing the capacity of community members through education, mentorship, entrepreneurship, sport and leadership opportunities.

2.3. 5 Respect and Dignity

Promoting respectful relationships, cultural understanding, fairness and the dignity of every individual.

2.3. 6 Integrity and Accountability

Conducting the organisation's affairs transparently, responsibly and ethically, with members' interests at the centre.

2.3. 7 Collaboration and Community Service

Working collaboratively within the Kalenjin community and with the broader Australian community to create positive social and economic outcomes.

2.3. 8 Peace and Constructive Resolution

Encouraging dialogue, reconciliation and appropriate mechanisms for resolving disputes fairly and constructively.

2.3. 9 Opportunity and Development

Creating pathways for networking, professional development, business development, employment, education and meaningful community participation.

2.3. 10 Positive Contribution

Encouraging the Kalenjin community to contribute constructively to Australian society while maintaining and celebrating its cultural identity.

ARTICLE 3 — OBJECTIVES AND PURPOSES

3.1 Objectives

3.1.1 The objective of Gotabgaa Australia is to establish and maintain a national, inclusive an community organisation that unites Kalenjin people living in Australia, promotes their cultural identity and heritage, and supports their social, economic, professional and community development.

3.1. 2 In furtherance of these objectives , **GOTABGAA Australia Limited** shall:

a) Promote unity, solidarity, cooperation and mutual understanding among Kalenjin people and communities throughout Australia;
b) Preserve, promote and celebrate Kalenjin culture, language, heritage, traditions, music, dance, storytelling, traditional knowledge and cultural practices;
c) Provide a national platform for individual members to participate in community affairs, organisational governance, cultural activities and decision-making;
d) Promote economic participation, entrepreneurship, employment opportunities, business development, professional networking, mentoring and investment awareness;
e) Encourage youth participation, leadership development, education, mentoring, sporting activities, recreation, talent development and healthy living;
f) Promote women's empowerment, leadership, entrepreneurship, education, skills development, professional advancement and meaningful participation in community and organisational governance;
g) Facilitate educational opportunities, professional development, intergenerational knowledge transfer and the sharing of skills and experience among members;
h) Organise and support cultural festivals, sporting competitions, entertainment programs, community gatherings and other activities that advance Gotabgaa Australia Limited 's objectives ;
i) Establish appropriate, impartial and confidential mechanisms for resolving internal community disputes, promoting reconciliation and maintaining harmonious relationships among members;
j) Develop positive, respectful and constructive relationships between the Kalenjin community and the broader Australian community, including through multicultural engagement and community partnerships;
k) Facilitate cooperation and collaboration with community associations, cultural organisations, sporting groups, educational institutions, businesses, government agencies, charitable organisations and other relevant stakeholders;
l) Establish national, state and territory representation structures that facilitate communication, participation and coordination across Australia;
m) Promote inclusion, equality, respect, integrity, accountability, transparency, non-discrimination and compliance with Australian law; and
n) Undertake any other lawful activity incidental or conducive to achieving these objectives .

3.2 Powers of Gotabgaa Australia Limited

Subject to the Corporations Act 2001 (Cth), this Constitution and all other applicable laws, Gotabgaa Australia Limited has the legal capacity and powers of a body corporate to undertake activities necessary or desirable to achieve its objectives .

Without limiting these powers, **GOTABGAA Australia Limited** may:

a) Acquire, hold, lease, manage, develop, encumber and dispose of real and personal property;
b) Enter into contracts, agreements, partnerships, memoranda of understanding and other lawful arrangements;
c) Open, operate and maintain bank accounts, receive funds, manage financial resources and make payments in furtherance of its objectives ;
d) Receive membership fees, donations, grants, sponsorships, bequests, fundraising proceeds and other lawful sources of income;
e) Apply for and administer government grants, philanthropic funding, corporate sponsorships and other financial assistance consistent with its objectives;
f) Organise, conduct, sponsor and participate in cultural events, sporting competitions, entertainment programs, conferences, educational activities, exhibitions and community development initiatives;
g) Establish and operate national, state and coordinating committee, departments, committees, working groups and advisory bodies in accordance with this Constitution;
h) Employ staff, engage consultants, appoint contractors and recruit volunteers as necessary to support Gotabgaa Australia Limited 's activities;
i) Collaborate with or support other organisations, institutions and individuals whose activities are consistent with Gotabgaa Australia Limited 's objectives;
j) Publish, distribute and communicate information through websites, digital platforms, newsletters, publications, social media and other appropriate channels;
k) Establish appropriate governance, financial management, risk management, safeguarding, dispute resolution and accountability procedures;
l) Invest and manage Company funds prudently and lawfully, consistent with its objectives and applicable legal obligations;
m) Obtain insurance, professional advice and other services necessary for the proper conduct of Gotabgaa Australia Limited 's affairs;
n) Establish lawful fundraising and income-generating activities, provided that all resulting income and property are applied in accordance with clause 3.3; and
o) Do all other lawful things incidental or conducive to the attainment of Gotabgaa Australia Limited 's objectives.

3.2.1 GOTABGAA Australia Limited must exercise its powers solely to advance its objectives and must not undertake activities that are inconsistent with its not-for-profit character or applicable legal obligations.

3.3 Not-for-Profit Principle

a) Gotabgaa Australia Limited is established and operated as a not-for-profit organisation.
b) The income, assets and property of Gotabgaa Australia Limited must be applied solely towards the promotion and fulfilment of its objectives .

c) No portion of Gotabgaa Australia Limited 's income or property may be paid, transferred or distributed, directly or indirectly, to a member merely by reason of that person's membership.
d) Nothing in this clause prevents Gotabgaa Australia Limited from:
e) eimbursing a member for reasonable expenses properly incurred on behalf of Gotabgaa Australia Limited;
f) Paying reasonable and proper remuneration to an individual for services actually provided to Gotabgaa Australia Limited;
g) Making payments to a member or another person in good faith in return for goods supplied or services rendered on arm's-length terms; or
h) Providing assistance, benefits or services to individuals or communities in furtherance of Gotabgaa Australia Limited 's objectives.
i) Any payment, reimbursement or other permitted benefit under paragraph (d) must be properly authorised, documented and managed in accordance with this Constitution, applicable laws and Gotabgaa Australia Limited 's financial management policies.
j) Gotabgaa Australia Limited must not operate for the private financial gain of its members, directors or officeholders. Any surplus generated through its activities must be retained or applied towards advancing its objectives.
k) Gotabgaa Australia Limited must maintain appropriate financial records, internal controls and accountability procedures to ensure that its resources are used responsibly and for their intended purposes.

3.4 Public Benefit and Community Benefit

a) Gotabgaa Australia Limited shall conduct its activities for the benefit of the Kalenjin community in Australia and, where appropriate, the broader Australian community.
b) Gotabgaa Australia Limited shall seek to advance public and community benefit through:
    i. the preservation and promotion of cultural heritage and identity;
    ii. the promotion of social inclusion, community participation and intercultural understanding;
    iii. the development of educational, sporting, leadership and professional opportunities;
    iv. the promotion of economic participation, entrepreneurship and skills development;
    v. the empowerment of women and the meaningful participation of young people;
    vi. the promotion of respectful relationships, community harmony, reconciliation and constructive dispute resolution; and
    vii. collaboration with relevant organisations and institutions to address community needs and advance shared objectives.

c) Gotabgaa Australia Limited shall provide opportunities for participation without unlawful discrimination on grounds including sex, age, disability, ethnicity, nationality, religion or other characteristics protected under applicable law.

d) (d) Membership and participation in Gotabgaa Australia Limited 's activities shall be governed by this Constitution and applicable membership policies. Gotabgaa Australia Limited shall promote fair access to its programs and opportunities, subject to lawful eligibility requirements and the nature of the relevant activity.

e) (e) Gotabgaa Australia Limited shall operate in a manner consistent with Australia's multicultural character and shall encourage positive relationships between Kalenjin people and people from other cultural and community backgrounds.

f) (f) Gotabgaa Australia Limited shall maintain appropriate standards of transparency, accountability, responsible governance and financial stewardship in pursuing its public and community benefit objectives.

g) (g) Nothing in this Article shall be interpreted as authorising Gotabgaa Australia Limited to engage in unlawful discrimination, distribute profits to members or depart from its not-for-profit character.

ARTICLE 4 — FOUNDING MEMBERS AND NATIONAL IDENTITY

4.1 Founding members

a) Gotabgaa Australia is established as a national community organisation intended to unite Kalenjin people living in Australia through a common platform for cultural preservation, community participation, social development and economic opportunity.

b) The founding members, promoters and any Founding members that contributed to the establishment of Gotabgaa Australia Limited may be identified in a Founding Register or Schedule approved by Gotabgaa Australia Limited in accordance with applicable law and this Constitution.

c) The names and details of Founding members shall be recorded only where those organisations have been identified and their founding status has been appropriately confirmed. No organisation shall be described as a founding organisation solely by reason of its membership in, cooperation with or support for Gotabgaa Australia Limited.

d) Unless otherwise expressly provided by this Constitution and permitted by law, recognition as a founding organisation shall not confer automatic individual membership, voting rights, ownership rights, a permanent seat on the Governing Council or authority over Gotabgaa Australia Limited 's affairs.

e) Gotabgaa Australia Limited shall maintain its independence as a nationally governed, individual-membership organisation, notwithstanding its cooperation with existing Kalenjin associations, cultural groups, sporting organisations, welfare groups and other community bodies.

4.2 Recognition of Founding members

a) Gotabgaa Australia Limited may formally recognise organisations and individuals that have made a documented contribution to its establishment, development or continuing advancement.
b) Recognition may take the form of acknowledgment in Gotabgaa Australia Limited 's records, publications, official events, historical materials or other appropriate communications.
c) The Governing Council may establish procedures for verifying and recording founding status, provided that such procedures are consistent with this Constitution and do not improperly exclude or misrepresent persons or organisations that contributed to Gotabgaa Australia Limited 's establishment.
d) Recognition of a founding organisation shall be honorary or historical unless specific rights or responsibilities are expressly established by this Constitution or a lawful resolution of Gotabgaa Australia Limited.
e) No founding organisation shall have the right to direct Gotabgaa Australia Limited 's operations, appoint or remove directors, control membership decisions or exercise a veto over Company decisions solely because of its founding status.
f) Any dispute concerning recognition as a founding organisation shall be addressed through procedures approved by Gotabgaa Australia Limited, having regard to documentary evidence, procedural fairness and the interests of the organisation as a whole.

4.3 National Character

a) Gotabgaa Australia shall operate as a national organisation serving Kalenjin people living throughout the Commonwealth of Australia.
b) Gotabgaa Australia Limited shall promote a shared Kalenjin identity, unity, cultural continuity and cooperation while respecting the diversity of individuals, families, sub-communities, cultural traditions and local community experiences within the Kalenjin community.
c) Gotabgaa Australia Limited shall operate within Australia's multicultural and democratic society and shall comply with applicable Commonwealth, state and territory laws.
d) Membership shall be individual-based. Eligible individuals shall apply directly to Gotabgaa Australia in accordance with this Constitution and Gotabgaa Australia Limited 's membership rules.
e) Membership shall not depend on membership of, nomination by, affiliation with or approval from an existing Kalenjin association, welfare group, cultural organisation, sporting group or state-based community organisation.
f) Gotabgaa Australia Limited shall encourage participation across generations and promote meaningful involvement by women, young people, elders, professionals, families and other eligible community members.

g) Gotabgaa Australia Limited shall maintain a national governance framework that supports consistent organisational standards, democratic participation, financial accountability and coordination of activities throughout Australia.
h) Gotabgaa Australia Limited shall not be controlled by any single state or territory, local association, family group, sub-community or other sectional interest. Its decisions shall be made in accordance with this Constitution and in the interests of Gotabgaa Australia Limited 's objectives and membership as a whole.

4.4 State and Territory Representation

a) Gotabgaa Australia Limited shall seek to ensure effective national representation and participation across all Australian states and territories.
b) For the purposes of national representation, Gotabgaa Australia Limited recognises the following eight Australian jurisdictions:
   i. New South Wales;
   ii. Victoria;
   iii. Queensland;
   iv. Western Australia;
   v. South Australia;
   vi. Tasmania;
   vii. the Australian Capital Territory; and
   viii. the Northern Territory.
c) Gotabgaa Australia Limited may establish a state or coordination committee, appoint or elect a state or territory representative, or create another appropriate local structure for each jurisdiction in accordance with this Constitution and any approved governance policies.
d) State and territory representatives shall:
   i. represent the interests and views of members within their respective jurisdictions;
   ii. Communicate national decisions, initiatives and policies to local members;
   iii. Communicate local concerns, proposals and opportunities to the National Governing Council;
   iv. Coordinate or support approved local cultural, sporting, educational, social and community activities;
   v. Encourage membership development and participation;
   vi. identify opportunities for partnerships, sponsorships, networking and community engagement; and
   vii. provide reports to the National Governing Council in accordance with approved reporting procedures.
e) State and coordination committees and representatives shall operate within the national governance framework of Gotabgaa Australia and shall comply with this Constitution, Gotabgaa Australia Limited 's policies and lawful decisions of the National Governing Council.

f) No state or coordination committee shall constitute a separate legal entity or operate independently of Gotabgaa Australia Limited unless Gotabgaa Australia Limited expressly authorises a separate legal arrangement in accordance with applicable law.
g) The establishment, composition, election or appointment, tenure, powers and removal of state and territory representatives shall be governed by this Constitution and any applicable rules or policies adopted by Gotabgaa Australia Limited.
h) Gotabgaa Australia Limited shall endeavour to ensure that representation is fair, inclusive and responsive to the circumstances of members in each jurisdiction, while maintaining the integrity and effectiveness of national governance.

4.5 Affiliated Organisations

a) **Gotabgaa Australia Limited** may develop cooperative relationships, partnerships and affiliations with existing Kalenjin associations, cultural groups, sporting organisations, welfare groups, community associations, businesses, educational institutions, charitable organisations and other bodies whose activities are consistent with Gotabgaa Australia Limited 's objectives.
b) Such relationships may support cultural programs, sporting competitions, entertainment events, community education, business networking, sponsorship, fundraising, professional development and other initiatives that advance Gotabgaa Australia Limited 's objectives.
c) The Governing Council may establish an affiliation policy setting out eligibility criteria, application and approval procedures, expected standards of conduct, reporting requirements and the terms on which affiliated organisations may participate in Company activities.
d) Affiliation shall not automatically confer membership of Gotabgaa Australia Limited on an affiliated organisation or its members. Individuals must apply for membership directly and satisfy the requirements of this Constitution.
e) Unless expressly authorised by this Constitution and permitted by law, affiliated organisations shall not:

i. exercise voting rights in Gotabgaa Australia Limited by virtue of their affiliation;
ii. automatically appoint representatives to the National Governing Council;
iii. control or determine the membership status or voting rights of individual members;
iv. exercise ownership, management or decision-making authority over Gotabgaa Australia Limited; or
v. bind Gotabgaa Australia Limited to contracts, financial commitments or other obligations without proper authorisation.

f) Affiliated organisations may be invited to participate in consultations, forums, advisory activities, committees, joint programs and community events, subject to Gotabgaa Australia Limited 's policies and the terms of the relevant arrangement.

g) All affiliations and partnerships shall be conducted in a manner consistent with Gotabgaa Australia Limited 's independence, not-for-profit character, governance obligations and objectives.
h) The Governing Council may suspend, review or terminate an affiliation in accordance with an approved policy, provided that the relevant organisation is afforded procedural fairness where appropriate.
i) Nothing in this clause prevents Gotabgaa Australia Limited from collaborating with organisations that are not formally affiliated with it, provided that the collaboration is lawful and consistent with Gotabgaa Australia Limited 's objectives.

ARTICLE 5 — MEMBERSHIP

5.1 Membership Categories

Gotabgaa Australia will operate on an individual membership model.

5.2 Eligibility

a) Every Kalenjin individual living in Australia is eligible for membership in accordance with the organisation's constitution and membership rules.
b) Eligibility will not depend on membership of another Kalenjin association, welfare group, cultural organisation or state-based organisation.

5.3 Application for Membership

5.3.1 Every eligible Kalenjin individual living in Australia may apply for membership in accordance with the organisation's constitution and membership rules.

5.3.2 “Kalenjin” shall refer to a person who identifies as belonging to the Kalenjin ethnic community through ancestry, cultural heritage, language, or recognised community affiliation, including descendants of the community living in Australia, irrespective of nationality, citizenship, gender, or place of birth.

5.4 Admission of Members

5.4.1 A person or eligible organisation seeking membership of the Australian Guarantee Company shall submit an application in the form and manner prescribed by the Board. The application shall confirm the applicant’s willingness to support Gotabgaa Australia Limited ’s objectives , comply with this Constitution, observe Gotabgaa Australia Limited ’s policies and code of conduct, and fulfil any applicable membership obligations.

5.4.2The Board, or a membership committee authorised by the Board, shall consider each application fairly and consistently with Gotabgaa Australia Limited ’s objectives , membership criteria and applicable Australian law. An application may be approved or refused on reasonable

grounds, provided that the decision is made in good faith and without unlawful discrimination. The applicant shall be notified of the decision within a reasonable period. Where an application is refused, the applicant may request written reasons and seek reconsideration in accordance with procedures established by Gotabgaa Australia Limited.

5.4.3 Membership shall commence only when the application has been approved, the applicant has satisfied any applicable admission requirements, and the applicant's details have been entered in the Register of Members. Each admitted member shall be bound by this Constitution and shall enjoy the rights and assume the responsibilities applicable to their membership category. Admission to membership shall not, by itself, confer a right to hold office or exercise voting rights beyond those provided by this Constitution and applicable law.

5.5 Rights of Members

Subject to the constitution and membership rules, members may:

Participate in **Gotabgaa Australia Limited** activities;

i. Attend national and state/community forums;
ii. Vote in elections where eligible;
iii. Nominate for elected positions;
iv. Participate in cultural, economic, sporting and community programs;
v. Raise issues affecting the community;
vi. Contribute ideas and proposals to **Gotabgaa Australia Limited.**

5.6 Obligations of Members

Members are expected to:

a) Respect the Constitution and policies of Gotabgaa;
b) Respect other members;
c) Promote unity and inclusion;
d) Avoid conduct that brings the organisation into disrepute;
e) Participate constructively in community activities;
f) Follow established dispute-resolution procedures.

5.7 Membership Fees

a. ONE-OFF MEMBERSHIP ANNUAL MAINTENANCE
   A one-off payment of $50 is payable by each person upon joining GotabGaa.
b. ANNUAL MAINTANANCE
   An annual fee of $20 supports ongoing administration and maintenance, including the website, phone bills, Zoom subscription and AGM costs

c. The membership fee payable by members shall be determined by the Annual General Meeting (AGM) from time to time, and shall be payable in accordance with the procedures and timelines approved by the organisation.

5.8 Register of Members

5.8.1 Gotabgaa Australia Limited must establish and maintain a Register of Members in accordance with sections 168 and 169 of the Corporations Act 2001 (Cth) and any other applicable legal requirements.

5.8.2 The Register of Members must record, at a minimum, the information required by law, including:

(a) the full name of each member;

(b) the member's address, as required by section 169 of the Act;

(c) the date on which the member's name is entered in the Register; and

(d) any additional information required by law or reasonably necessary for the proper administration of membership.

5.8.3 The Secretary, or another person authorised by the National Governing Council, shall be responsible for maintaining and updating the Register of Members.

5.8.4 The Register must be updated promptly following the admission of a new member, resignation, termination of membership or any other change affecting a person's membership status.

5.8.5 Where Gotabgaa Australia Limited has more than 50 members, it must maintain an up-to-date index of members' names in accordance with section 169(2) of the Corporations Act 2001 (Cth), unless the Register itself operates effectively as an index.

5.8.6 Gotabgaa Australia Limited shall take reasonable measures to protect the personal information of members and restrict access to it in accordance with applicable privacy laws and Gotabgaa Australia Limited 's policies.

5.8.7 Access to the Register shall be provided to members and other persons entitled to access it under applicable law, subject to any lawful restrictions.

5.8.8 Membership records shall be maintained accurately, securely and confidentially and shall not be used for purposes unrelated to Gotabgaa Australia Limited 's legitimate functions, except as authorised by law.

5.9 Resignation

5.9.1 A member may resign from Gotabgaa Australia Limited at any time by giving written notice to the Secretary or another person authorised by the National Governing Council to receive membership notices.

5.9.2 A resignation takes effect on the date Gotabgaa Australia Limited receives the written notice or on a later date specified by the member in that notice.

5.9.3 Gotabgaa Australia Limited shall acknowledge receipt of the resignation and update the Register of Members within a reasonable period.

5.9.4 A member who resigns shall cease to enjoy membership rights from the effective date of resignation, including voting rights and eligibility to participate in decisions reserved for members, subject to any rights or obligations that survive cessation of membership under this Constitution or applicable law.

5.9.5 Resignation does not release a member from any liability or obligation that arose before the resignation took effect.

5.9.6 As Gotabgaa Australia Limited is limited by guarantee, a member who resigns may remain liable for the amount of that member's guarantee where the requirements of the Corporations Act 2001 (Cth) apply, including in relation to a winding up occurring within the period prescribed by law.

5.9.7 No member shall be penalised, threatened or subjected to unreasonable disadvantage for exercising the right to resign.

5.10 Suspension

5.10.1 The National Governing Council may suspend a member's membership rights where there are reasonable grounds to believe that the member has:

(a) seriously breached this Constitution or an approved policy of Gotabgaa Australia Limited;

(b) engaged in conduct that materially threatens the safety, welfare or rights of members or participants in Company activities;

(c) engaged in serious misconduct that may damage Gotabgaa Australia Limited 's reputation, operations or legitimate interests;

(d) misused Gotabgaa Australia Limited 's funds, property, confidential information or authority;

(e) engaged in harassment, intimidation, discrimination, threats, violence or retaliation contrary to applicable law or Company policy; or

(f) obstructed an authorised investigation or seriously undermined an established dispute-resolution process.

5.10.2 Suspension shall be a protective or disciplinary measure proportionate to the circumstances and shall not be imposed arbitrarily, discriminatorily or for the purpose of suppressing legitimate disagreement or criticism.

5.10.3 Except where an immediate temporary suspension is reasonably necessary to protect individuals, preserve evidence, safeguard Company property or prevent serious disruption, the member must be notified of the proposed suspension and given a reasonable opportunity to respond before a decision is made.

5.10.4 Where an immediate temporary suspension is imposed, Gotabgaa Australia Limited must provide written notice of the reasons as soon as practicable and commence a fair review of the matter without unreasonable delay.

5.10.5 A suspension notice must state:

(a) the reasons for the suspension;

(b) the conduct or circumstances giving rise to the suspension;

(c) the membership rights or activities affected;

(d) the anticipated duration or review date of the suspension; and

(e) the procedure for responding to the allegations and seeking a review.

5.10.6 A suspension shall be limited to the period reasonably necessary to investigate or address the relevant matter. The National Governing Council must review any continuing suspension at reasonable intervals.

5.10.7 During suspension, a member may be restricted from voting, holding office, representing Gotabgaa Australia Limited or participating in specified activities, to the extent stated in the suspension notice and permitted by this Constitution and applicable law.

5.10.8 Suspension does not automatically terminate membership or remove any obligation imposed on the member by law.

5.10.9 Gotabgaa Australia Limited must ensure that any investigation or disciplinary process is conducted impartially, confidentially and in accordance with clause 5.12.

5.11 Termination of Membership

5.11.1 A person's membership may cease upon:

a) the member's resignation under clause 5.9;

(b) the member's death;

(c) termination following a disciplinary process under this clause;

(d) another event that results in cessation of membership under this Constitution or applicable law; or

(e) any other lawful circumstance expressly provided for in this Constitution.

5.11.2 The National Governing Council may terminate a member's membership on reasonable grounds where the member has engaged in serious misconduct, repeated or material breaches of this Constitution, or conduct fundamentally inconsistent with Gotabgaa Australia Limited 's objectives and legitimate interests.

5.11.3 Termination may be considered where:

(a) serious misconduct has been established following a fair process;

(b) a member has repeatedly breached this Constitution or approved policies despite reasonable warnings, where warnings are appropriate;

(c) a member has committed fraud, theft, deliberate financial misconduct or serious misuse of Company property;

(d) a member has engaged in serious threats, violence, harassment, intimidation or other conduct that materially compromises the safety or rights of others; or

(e) a member's continued membership presents a substantiated and serious risk to Gotabgaa Australia Limited or its members that cannot reasonably be addressed through a less restrictive measure.

5.11.4 Termination must not be imposed solely because a member expresses a lawful opinion, raises a legitimate concern, participates in a disagreement in good faith or exercises a right protected by law.

5.11.5 Before membership is terminated, the member must receive written notice of the allegations, the proposed action and the grounds relied upon, together with a reasonable opportunity to respond in accordance with clause 5.12.

5.11.6 The National Governing Council shall consider the available evidence, the member's response, the seriousness of the conduct, any relevant mitigating circumstances and whether a lesser measure would be sufficient.

5.11.7 A termination decision must be made by persons who are impartial and have no material conflict of interest in the matter. A person directly involved in the dispute must not participate in determining the outcome.

5.11.8 Gotabgaa Australia Limited must notify the member in writing of the decision, the reasons for it, the effective date and the procedure for seeking a review or appeal.

5.11.9 Upon termination, Gotabgaa Australia Limited shall update the Register of Members and the former member shall cease to exercise membership rights, subject to any applicable legal rights or obligations.

5.11.10 Termination does not entitle a former member to a refund of membership fees or a share of Gotabgaa Australia Limited 's assets, except where a refund is required by law or expressly authorised under an applicable Company policy.

5.11.11 A former member remains liable for any obligation that accrued before termination and for any liability arising under Gotabgaa Australia Limited 's guarantee where applicable under the Corporations Act 2001 (Cth).

5.12 Procedural Fairness

5.12.1 All decisions concerning suspension, disciplinary action or termination of membership must comply with the principles of natural justice, procedural fairness, impartiality, confidentiality and respect.

5.12.2 Gotabgaa Australia Limited shall ensure that a member subject to disciplinary proceedings:

(a) receives clear written notice of the allegations and the possible consequences;

(b) is given sufficient information about the allegations to understand and respond to them, subject to lawful confidentiality requirements;

(c) has a reasonable opportunity to provide a written or oral response and submit relevant evidence;

(d) is allowed a reasonable period to prepare a response, taking into account the seriousness and complexity of the matter;

(e) has the matter considered by an impartial decision-maker who has no material conflict of interest;

(f) is treated respectfully and without discrimination, intimidation or retaliation; and

(g) receives written notification of the outcome and the reasons for the decision.

5.12.3 The National Governing Council may refer a complaint or disciplinary matter to the Conflict Resolution Committee for investigation, mediation or recommendations, in accordance with the Committee's approved terms of reference.

5.12.4 The Conflict Resolution Committee must operate independently and must not be controlled by a person directly involved in the dispute. Any member of the Committee with a material conflict of interest must disclose that conflict and withdraw from the relevant proceedings.

5.12.5 Where the Conflict Resolution Committee makes recommendations, the National Governing Council shall consider those recommendations fairly and independently before making any decision that falls within its authority.

5.12.6 A member may request a review or appeal of a suspension or termination decision by giving written notice to the Secretary within 21 days after receiving the decision, or within a longer period allowed by Gotabgaa Australia Limited for reasonable cause.

5.12.7 An appeal shall be considered by an impartial review panel, the Conflict Resolution Committee where appropriately authorised, or another body designated under a procedure approved by Gotabgaa Australia Limited. A person who made or materially influenced the original decision must not determine the appeal.

5.12.8 The appeal body may:

(a) affirm the original decision;

(b) vary the suspension or disciplinary measure;

(c) revoke the decision;

(d) remit the matter for reconsideration; or

(e) recommend another appropriate outcome within its authority.

5.12.9 The member must be informed in writing of the appeal outcome and the reasons for it.

5.12.10 Information relating to disciplinary proceedings must be handled confidentially and disclosed only to persons who reasonably need it for the investigation, decision, appeal, legal compliance or protection of individuals.

5.12.11 Nothing in this clause prevents Gotabgaa Australia Limited from referring suspected criminal conduct, safeguarding concerns or other matters to an appropriate external authority where required or permitted by law.

5.12.12 The exercise of rights under this clause must not be used as grounds for retaliation, intimidation or further disciplinary action.

5.13 Reinstatement

5.13.1 A former member whose membership has ceased through resignation or termination may apply for reinstatement, subject to this Constitution and any applicable membership rules.

5.13.2 An application for reinstatement must be submitted in writing to the Secretary and must include:

(a) the applicant's name and previous membership details;

(b) the reasons for seeking reinstatement; and

(c) any relevant information reasonably required to assess the application.

5.13.3 The National Governing Council shall consider the application fairly, having regard to:

(a) the circumstances in which membership ceased;

(b) the applicant's willingness to comply with this Constitution and Gotabgaa Australia Limited 's policies;

(c) any outstanding obligations to Gotabgaa Australia Limited;

(d) any steps taken to address the conduct or circumstances that led to termination, where relevant; and

(e) the interests, safety and legitimate rights of Gotabgaa Australia Limited and its members.

5.13.4 Where the original termination decision is overturned on appeal, Gotabgaa Australia Limited shall restore the person's membership, subject to any lawful conditions determined by the appeal body.

5.13.5 Where reinstatement is granted following resignation or a previous termination, the person shall be entered in the Register of Members in accordance with applicable law and shall regain membership rights from the effective date of reinstatement.

5.13.6 Reinstatement shall not automatically restore a former officeholder to a position on the National Governing Council, a committee or another elected or appointed body. Such a position must be obtained in accordance with the relevant election or appointment procedures.

5.13.7 The National Governing Council may impose reasonable and lawful conditions on reinstatement where necessary to protect Gotabgaa Australia Limited 's legitimate interests, provided that those conditions are proportionate and communicated in writing.

5.13.8 An application for reinstatement must not be refused arbitrarily or discriminatorily. The applicant must be notified in writing of the outcome and, where reinstatement is refused, the reasons for that decision.

5.13.9 A person whose reinstatement application is refused may request a review under Gotabgaa Australia Limited 's approved membership review procedures.

5.13.10 Reinstatement shall not extinguish any liability or obligation that arose before the person's membership ceased, including any liability under Gotabgaa Australia Limited 's guarantee that remains applicable under law.

ARTICLE 6 — MEMBERS' GUARANTEE AND LIABILITY

6.1 Liability of Members

6.1.1 Gotabgaa Australia is a public company limited by guarantee. The liability of each member is limited to the amount that the member undertakes to contribute to the property of Gotabgaa Australia Limited if Gotabgaa Australia Limited is wound up.

6.1.2 No member is personally liable for the debts, liabilities or obligations of Gotabgaa Australia solely by reason of being a member, except to the extent required under this Constitution or applicable law.

6.1.3 A member is not required to contribute additional funds to Gotabgaa Australia Limited beyond the agreed guarantee amount, except where the member separately agrees in writing or an obligation arises under applicable law.

6.1.4 Nothing in this Article exempts a member from personal liability for their own unlawful conduct, fraud, breach of duty or other conduct for which personal liability may arise under Australian law.

6.2 Guarantee Amount

6.2.1 Each member undertakes to contribute to the property of Gotabgaa Australia, if Gotabgaa Australia Limited is wound up while that person is a member or within one year after the person ceases to be a member, an amount

6.2.2 The contribution is limited to the amount reasonably required for:

a. payment of the debts and liabilities of Gotabgaa Australia Limited contracted before the person ceased to be a member;

b. payment of the costs, charges and expenses of winding up; and

c. adjustment of the rights of contributories among themselves, as applicable under the *Corporations Act 2001* (Cth).

6.2.3 The guarantee is a contingent obligation that applies in the circumstances prescribed by law. It does not constitute an ordinary membership fee, subscription or automatic annual payment.

6.2.4 The guarantee amount must be stated in this Constitution and applied consistently to members unless a lawful constitutional amendment provides otherwise.

6.3 Liability on Winding Up

6.3.1 If Gotabgaa Australia is wound up, each person who is a member at the relevant time, or who ceased to be a member within the preceding year, may be required to contribute an amount not exceeding the guarantee specified in clause 6.2, subject to the *Corporations Act 2001* (Cth).

6.3.2 A former member's liability is limited to the circumstances and extent permitted by law, including the statutory requirements concerning debts, liabilities and winding-up expenses.

6.3.3 No member is required to contribute more than the applicable guarantee amount under this Article.

6.3.4 Any surplus property remaining after Gotabgaa Australia Limited 's debts, liabilities and winding-up expenses have been satisfied must be dealt with in accordance with this Constitution and applicable law. It must not be distributed to members merely because they are or have been members of Gotabgaa Australia Limited.

6.4 No Share Capital

6.4.1 Gotabgaa Australia has no share capital and must not issue shares to its members.

6.4.2 Membership does not confer ownership of shares, a proprietary interest in Gotabgaa Australia Limited 's assets, or an entitlement to a distribution of Gotabgaa Australia Limited 's property.

6.4.3 Members participate in Gotabgaa Australia in accordance with the membership rights and responsibilities established by this Constitution. These may include participation in community programs, attendance at meetings, voting where eligible and nomination for governance positions.

6.4.4 Donations, sponsorships, grants, membership fees and other lawful funds received by Gotabgaa Australia Limited must be applied towards its objectives, activities and legitimate operating expenses in accordance with this Constitution and applicable law.

6.5 No Dividends

6.5.1 Gotabgaa Australia must operate on a not-for-profit basis. Its income and property must be applied solely towards promoting and achieving its objectives .

6.5.2 No portion of Gotabgaa Australia Limited 's income or property may be paid or transferred, directly or indirectly, to a member by way of dividend, profit distribution or other distribution merely because of that person's membership.

6.5.3 Clause 6.5.2 does not prevent Gotabgaa Australia Limited from making a payment in good faith and on reasonable terms for:

a. reimbursement of reasonable expenses properly incurred on behalf of Gotabgaa Australia Limited;

b. goods or services supplied to Gotabgaa Australia Limited at reasonable and properly authorised rates;

c. lawful remuneration for work actually performed for Gotabgaa Australia Limited, where authorised under this Constitution and applicable law; or

d. other payments that are lawful, properly documented and consistent with Gotabgaa Australia Limited ’s not-for-profit objectives.

6.5.4 Any payment involving a member, director or other person with a potential conflict of interest must be appropriately disclosed, authorised and recorded in accordance with this Constitution, Gotabgaa Australia Limited ’s policies and applicable law.

6.5.5 Any surplus generated by Gotabgaa Australia Limited ’s cultural, sporting, entertainment, fundraising, sponsorship, partnership or other activities must be retained or applied towards its objectives, including community participation, cultural preservation, youth and women’s empowerment, sporting development, education and professional opportunities, and other approved community programs.

6.5.6 This clause must be read consistently with Gotabgaa Australia Limited ’s not-for-profit provisions and any applicable requirements governing the use of Gotabgaa Australia Limited ’s income and assets.

ARTICLE 7 — GOVERNANCE STRUCTURE

7.1 Governance Principles

7.1.1 **Gotabgaa Australia Limited** must be governed in accordance with this Constitution, the *Corporations Act 2001* (Cth), other applicable Australian laws and the organisation’s adopted policies.

7.1.2 The governance of **Gotabgaa Australia Limited** must be guided by the principles of:

a. unity and solidarity across the Kalenjin community;

b. integrity, transparency and accountability;

c. inclusion, equality and non-discrimination;

d. cultural preservation and respect for tradition;

e. democratic participation and responsible leadership;

f. gender inclusion, youth participation and intergenerational cooperation;

g. responsible financial management and appropriate risk oversight;

h. respect for Australia's multicultural society and applicable laws; and

i. fair, confidential and impartial dispute resolution.

7.1.3 Governance responsibilities must be clearly allocated to prevent conflicts of authority, promote effective decision-making and ensure that the organisation remains accountable to its members.

7.1.4 **Gotabgaa Australia Limited** must operate nationally and must not be controlled exclusively by any individual, state or coordination committee, affiliated organisation, cultural group or other external body.

7.2 Members

7.2.1 The members of Gotabgaa Australia constitute the National General Membership and are the foundation of the organisation.

7.2.2 Members may exercise their rights under this Constitution, including:

a. attending and participating in general meetings;

b. voting on matters for which they are eligible to vote;

c. electing directors and other representatives in accordance with this Constitution;

d. nominating eligible persons for elected positions;

e. considering reports presented by the Board of Directors;

f. participating in constitutional and governance decisions;

g. raising matters affecting the organisation and the Kalenjin community; and

h. participating in cultural, sporting, educational, economic and community programs.

7.2.3 Membership is individual-based. An individual's membership and voting rights must not depend on membership of another Kalenjin association, welfare group, cultural organisation or state-based organisation.

7.2.4 Members must comply with this Constitution and the lawful policies and decisions of Gotabgaa Australia.

7.2.5 Members must respect other members, promote unity and inclusion, participate constructively in community activities and use established dispute-resolution procedures.

7.2.6 The members must hold the Board accountable through general meetings, elections, reports and other mechanisms provided under this Constitution and applicable law.

7.2.7 An Annual General Meeting must be held in accordance with this Constitution and the *Corporations Act 2001* (Cth).

7.3 Board of Directors

7.3.1 Gotabgaa Australia must have a Board of Directors responsible for the governance, strategic direction and oversight of Gotabgaa Australia Limited.

7.3.2 The Board of Directors shall constitute the Gotabgaa National Governing Council for the purposes of national governance under this Constitution. References to the National Governing Council in this Constitution mean the Board of Directors acting collectively, unless the context requires otherwise.

7.3.3 The Board must:

a. implements the strategic objectives of Gotabgaa Australia;

b. oversees Gotabgaa Australia Limited ’s financial affairs, risk management and compliance;

c. approves annual plans, budgets, programs and activities;

d. oversees committees and working groups;

e. coordinate national initiatives and promote cooperation across states and territories;

f. represents Gotabgaa Australia in external engagements, or authorise suitable representatives to do so;

g. develops and oversees partnerships with relevant organisations, government agencies, businesses, sponsors and community stakeholders;

h. promotes unity, inclusion and accountability;

i. receives and considers reports from state and territory representatives;

j. considers recommendations from Gotab Miyoot Australia;

k. ensure that disputes are handled under established procedures;

l. monitors the performance of the organisation against its objectives and strategic plans; and

m. report to members on the organisation’s activities, finances and governance.

7.3.4 The Board must focus on governance, strategy and oversight rather than directly managing every community activity.

7.3.5 The Board may delegate specified functions to the National Executive Leadership, committees, officers or other authorised persons, subject to this Constitution and applicable law. Delegation does not remove any statutory duty or responsibility that a director cannot lawfully delegate.

7.3.6 The Board must exercise its powers in the best interests of Gotabgaa Australia and consistently with Gotabgaa Australia Limited ’s not-for-profit objectives.

7.4 National Executive Leadership

7.4.1 Gotabgaa Australia may establish a National Executive Leadership comprising the following offices:

a. National Chairperson;

b. Deputy Chairperson;

c. Secretary;

d. Assistant Secretary;

e. Treasurer; and

f. Assistant Treasurer.

7.4.2 The National Executive Leadership is responsible for coordinating the implementation of Board decisions and supporting the effective administration of Gotabgaa Australia.

7.4.3 Subject to Board authority and any written delegation, the National Executive Leadership may:

a. coordinates the implementation of approved strategic plans and annual programs;

b. coordinate communication between the Board, members, committees and state and territory representatives;

c. monitors the implementation of Board decisions;

d. coordinate meetings and maintain appropriate organisational records;

e. oversees the preparation of budgets, financial reports and administrative documents;

f. coordinate national events, partnerships and community initiatives; and

g. report to the Board on operational progress, emerging risks and matters requiring a decision.

7.4.4 The National Chairperson shall provide leadership, chair meetings as provided under this Constitution, promote effective governance and represent the organisation when authorised.

7.4.5 The Deputy Chairperson shall assist the National Chairperson and perform delegated duties, including acting in the Chairperson’s role when the Chairperson is unavailable.

7.4.6 The Secretary shall maintain or supervise the maintenance of minutes, notices, registers and other records required by this Constitution and applicable law.

7.4.7 The Assistant Secretary shall assist the Secretary and perform delegated duties.

7.4.8 The Treasurer shall oversee financial administration, financial reporting, budget monitoring and appropriate financial controls, subject to the Board’s oversight.

7.4.9 The Assistant Treasurer shall assist the Treasurer and perform delegated duties.

7.4.10 The National Executive Leadership must not exercise powers reserved to the members or the Board, except where expressly authorised by this Constitution or a lawful delegation.

7.5 Committees

7.5.1 The Board may establish standing or temporary committees and working groups to support the objectives and activities of Gotabgaa Australia.

7.5.2 Committees may include:

a. Culture and Language Committee;

b. Economic Development and Business Committee;

c. Youth and Sports Committee;

d. Women's Empowerment and Participation Committee;

e. Events Coordination Team;

f. Communications and Media Committee;

g. Membership and Engagement Committee;

h. Governance and Constitution Committee;

I. Conflict Resolution Committee; and

j. Audit, Risk and Governance Committee, where established.

7.5.3 The Board may establish additional committees when necessary to support the organisation's strategic objectives.

7.5.4 Each committee must operate under written terms of reference approved by the Board. The terms of reference must specify its purpose, membership, appointment process, responsibilities, reporting arrangements, decision-making authority and duration, where applicable.

7.5.5 Committees may develop proposals, coordinate activities, provide specialist advice and implement approved programs within their delegated authority.

7.5.6 A committee must not commit Gotabgaa Australia Limited to expenditure, enter into contracts, make public commitments on behalf of Gotabgaa Australia or exercise a power reserved to the Board or members unless properly authorised.

7.5.7 Committee members must declare relevant conflicts of interest and comply with the organisation's confidentiality, conduct and reporting requirements.

7.5.8 The Board may review, vary or terminate a committee's mandate, subject to this Constitution and applicable law.

7.6 Advisory Bodies

7.6.1 Gotabgaa Australia may maintain an Advisory Council known as **Gotab Miyoot Australia**, serving as a council of elders and community advisers.

7.6.2 The Advisory Council may include respected elders, cultural leaders, community leaders, senior professionals and women leaders, with due regard to the diversity of the Kalenjin community.

7.6.3 The Advisory Council may:

a. provides cultural and community guidance;

b. advises on matters affecting Kalenjin identity, traditions and heritage;

c. provide advice on significant community issues;

d. support intergenerational knowledge transfer;

e. advises on sensitive community matters;

f. promotes reconciliation, unity and constructive relationships;

g. guide traditional and cultural protocols; and

h. assist in preventing community disputes from escalating.

7.6.4 The Advisory Council may make recommendations to the Board but does not exercise the Board's statutory powers or direct Gotabgaa Australia Limited 's operations unless a specific lawful function is delegated to it.

7.6.5 The Board must establish clear rules governing the Advisory Council's appointment process, composition, tenure, conduct and reporting arrangements.

7.6.6 Advisory appointments do not automatically confer membership of Gotabgaa Australia Limited, voting rights at general meetings or appointment as a director.

7.6.7 Advisory bodies must act consistently with this Constitution and must not operate as an unaccountable parallel governing authority.

7.7 State and Coordination committees

7.7.1 **Gotabgaa Australia Limited** may establish coordination committee or appoint representatives in each of Australia's eight states and territories:

a. New South Wales;

b. Victoria;

c. Queensland;

d. Western Australia;

e. South Australia;

f. Tasmania;

g. Australian Capital Territory; ACT

h. Northern Territory.

7.7.2 Each coordination committee or representative must operate within the national governance framework and remain accountable to the Board in accordance with this Constitution and any approved coordination committee rules.

7.7.3 State and territory representatives may:

a. represents Gotabgaa Australia within their jurisdiction;

b. communicates national decisions to local members;

c. communicates local issues and proposals to the Board;

d. coordinate approved local activities;

e. support membership development and member participation;

f. identifies cultural, sporting, educational and economic opportunities;

g. support national events and initiatives; and

h. provides regular reports to the Board.

7.7.4 State and coordination committees are not separate organisations merely because they operate locally. Unless separately incorporated and formally recognised under an approved arrangement, they must not act as independent legal entities or represent themselves as having authority beyond that delegated by Gotabgaa Australia.

7.7.5 A coordination committee or representative must not enter into a contract, incur debt, open a bank account in Gotabgaa Australia Limited ’s name or make a financial commitment on behalf of Gotabgaa Australia without proper authorisation.

7.7.6 The Board must establish consistent procedures for coordination committee appointments or elections, reporting, financial accountability, dispute resolution and compliance with national policies.

7.7.7 State and territory representation must promote balanced national participation and must not undermine the individual membership model of Gotabgaa Australia.

7.8 Affiliated Organisations

7.8.1 **Gotabgaa Australia Limited** may cooperate with Kalenjin associations, cultural groups, sporting organisations, welfare organisations, businesses, community organisations and other bodies whose activities are consistent with its objectives.

7.8.2 The Board may establish an affiliation or partnership framework setting out eligibility, application procedures, recognition, responsibilities, benefits, reporting requirements and termination arrangements.

7.8.3 Affiliation does not automatically confer:

a. membership of Gotabgaa Australia on the organisation or its members;

b. voting rights at Company meetings;

c. a right to appoint or remove directors;

d. control over Gotabgaa Australia Limited ’s governance or finances; or

e. ownership of or entitlement to Gotabgaa Australia Limited ’s assets.

7.8.4 Individuals associated with an affiliated organisation must apply for individual membership if they wish to become members of **Gotabgaa Australia Limited**, subject to the eligibility requirements in this Constitution.

7.8.5 Affiliated organisations may support approved cultural, sporting, educational, economic, entertainment and community development initiatives.

7.8.6 Any formal partnership must be documented in writing where appropriate and must comply with Gotabgaa Australia Limited ’s financial controls, conflict-of-interest requirements and applicable law.

7.8.7 The Board may suspend or terminate an affiliation in accordance with the relevant agreement or policy, giving appropriate notice and a fair opportunity to respond where reasonably required.

7.8.8 No affiliation may compromise the independence, national character, individual membership model or not-for-profit objectives of **Gotabgaa Australia Limited**.

ARTICLE 8 — BOARD OF DIRECTORS

8.1 Composition of the Board

8.1.1 The Board of Directors shall comprise the National Chairperson, Deputy Chairperson, Secretary, Assistant Secretary, Treasurer, Assistant Treasurer and state and territory

representatives, together with any additional directors elected or appointed in accordance with this Constitution.

8.1.2 The Board's composition must support effective governance, appropriate skills and experience, gender inclusion, youth participation, cultural understanding and balanced representation across Australia.

8.1.3 The Board should include representation from all eight Australian states and territories, subject to the election and appointment procedures in this Constitution.

8.1.4 The Board may establish a process to fill a temporary gap in state or territory representation, provided the process is consistent with this Constitution and does not override members' statutory rights.

8.1.5 Each person appointed or elected as a director must satisfy the eligibility requirements of this Constitution and the *Corporations Act 2001* (Cth).

8.1.6 The Board must maintain a clear distinction between directors, executive officers, committee members, advisers and other volunteers. Holding an executive or advisory title does not, by itself, make a person a director.

8.2 Minimum Number of Directors

8.2.1 Gotabgaa Australia must have at least three directors, as required for a public company under the *Corporations Act 2001* (Cth).

8.2.2 At least two directors must ordinarily reside in Australia, as required by the Act.

8.2.3 The Board must maintain the minimum number of directors required by law at all times.

8.2.4 If the number of directors falls below the required minimum, the remaining directors may take only such action as is permitted by law and must arrange for the vacancy to be filled as soon as practicable.

8.2.5 The Board must not knowingly continue its ordinary business in a manner that contravenes statutory requirements concerning the number or residency of directors.

8.3 Eligibility to be a director

8.3.1 A person may be elected or appointed as a director if that person:

a. meets the eligibility requirements of the *Corporations Act 2001* (Cth);

b. is at least 18 years of age;

c. is eligible under this Constitution and any lawful election procedures;

d. has consented in writing to act as a director;

e. is not disqualified from managing corporations under applicable law, unless a legally effective permission or exemption applies;

f. agrees to comply with this Constitution, Gotabgaa Australia Limited ’s policies and directors’ legal duties; and

g. is willing to act in the best interests of Gotabgaa Australia.

8.3.2 A candidate must disclose any matter that may materially affect their eligibility, independence or ability to perform the duties of a director.

8.3.3 A person must not be appointed or continue as a director were prohibited by law.

8.3.4 Directors must disclose actual, potential and perceived conflicts of interest in accordance with the Act and Gotabgaa Australia Limited ’s conflict-of-interest policy.

8.3.5 The Board may establish reasonable nomination and suitability procedures, provided those procedures are consistent with this Constitution and do not unlawfully discriminate against eligible candidates.

8.4 Appointment and Election of Directors

8.4.1 Directors shall be elected by the members at a general meeting, except where this Constitution or applicable law permits a different appointment process.

8.4.2 The Board must establish and publish a reasonable nomination and election process before each election.

8.4.3 The process must specify nomination requirements, eligibility checks, voting procedures, election dates, the method of counting votes and the procedure for resolving election disputes.

8.4.4 Elections must be conducted fairly, transparently and without improper interference.

8.4.5 The members may elect directors to specific offices, including the National Chairperson, Deputy Chairperson, Secretary and Treasurer, where the election arrangements provide for those offices.

8.4.6 The Board may appoint an eligible person to fill a casual vacancy until the next general meeting at which the appointment can lawfully be considered, subject to the requirements of this Constitution and applicable law.

8.4.7 A person appointed to fill a casual vacancy must meet the same eligibility requirements as an elected director.

8.4.8 Each director must provide written consent to act and complete any required statutory notices, declarations or filings.

8.4.9 Gotabgaa Australia Limited must notify the Australian Securities and Investments Commission (ASIC) of changes to directors and other required details within the applicable statutory period.

8.5 Term of Office

8.5.1 Subject to this Constitution, a director shall hold office for a term of **2 years**, commencing on the date specified in the election result or appointment decision.

8.5.2 A director may be re-elected for one further consecutive term. After serving two consecutive terms, the director must stand down for at least one full term before being eligible for re-election to the same office.

8.5.3 The members may amend the term or consecutive-term limit by special resolution, subject to applicable law and the requirements for a valid constitutional amendment.

8.5.4 The Board may establish transitional arrangements for the first election cycle, including staggered terms, to promote continuity and preserve institutional knowledge.

8.5.5 A director remains in office until the end of their term, resignation, removal, disqualification or another event that lawfully ends their appointment.

8.5.6 A director whose term has expired may continue to act only to the extent permitted by law and this Constitution until a successor is appointed or elected.

8.5.7 The term of a person appointed to fill a casual vacancy must be determined in accordance with this Constitution and the applicable appointment decision.

8.6 Powers and Responsibilities

8.6.1 The Board is responsible for managing, or directing the management of, the business and affairs of **Gotabgaa Australia Limited**.

8.6.2 Subject to the powers reserved to members and any limitations imposed by law or this Constitution, the Board may:

a. determines Gotabgaa Australia Limited ’s strategic direction and priorities;

b. approves annual operating plans, budgets and programs;

c. oversees Gotabgaa Australia Limited ’s financial position, accounts, assets and liabilities;

d. establishes appropriate financial controls and risk-management procedures;

e. approves policies and procedures consistent with this Constitution;

f. appoints, supervise and, where authorised, remove executive officers and other personnel;

g. establishes, supervise and dissolve committees;

h. approves partnerships, sponsorships, grants and other arrangements;

i. oversees national cultural, sporting, entertainment, educational and community initiatives;

j. coordinate state and territory representation;

k. protects Gotabgaa Australia Limited ’s reputation, records, confidential information and property;

l. ensure compliance with statutory reporting and governance obligations;

m. monitors the performance of programs and committees; and

n. takes other lawful actions necessary to achieve Gotabgaa Australia Limited ’s objectives.

8.6.3 The Board must not exercise a power reserved by law or this Constitution to the members in general meeting.

8.6.4 The Board may delegate specified functions to an executive officer, committee or authorised representative on written terms. The Board must monitor the exercise of delegated authority.

8.6.5 The Board must ensure that Gotabgaa Australia Limited ’s funds and resources are applied to its objectives and are not used for unauthorised personal benefit.

8.7 Duties of Directors

8.7.1 Each director must comply with the duties imposed by the *Corporations Act 2001* (Cth), other applicable laws and this Constitution.

8.7.2 Without limiting those duties, each director must:

a. exercises their powers and discharges their duties with the care and diligence required by law;

b. act in good faith in the best interests of Gotabgaa Australia and for a proper purpose;

c. not improperly use their position to gain an advantage for themselves or another person or to cause detriment to Gotabgaa Australia Limited;

d. not improperly use information obtained through their position;

e. discloses material personal interests in matters relating to Gotabgaa Australia Limited as required by law;

f. complies with applicable requirements concerning conflicts of interest;

g. ensure that Gotabgaa Australia Limited maintains appropriate financial records and reporting systems;

h. exercise independent judgment and make informed decisions;

i. maintains the confidentiality of information where required by law or legitimate Company policy; and

j. act consistently with Gotabgaa Australia Limited ’s not-for-profit objectives and governance responsibilities.

8.7.3 Directors must not allow personal interests, family relationships, state or territory affiliations, political considerations or external organisations to improperly influence decisions made for Gotabgaa Australia Limited.

8.7.4 Directors must ensure that significant decisions are appropriately documented and that relevant risks, financial implications and conflicts of interest are considered.

8.7.5 A director who becomes aware of a serious governance, financial or legal concern must take appropriate steps to raise and address the matter in accordance with the law and Gotabgaa Australia Limited ’s procedures.

8.7.6 Nothing in this Constitution excludes or limits a director’s statutory duties or liability where such exclusion or limitation is prohibited by law.

8.8 Board Meetings

8.8.1 The Board must meet as often as necessary to perform its responsibilities and at least once every three months, unless a more frequent meeting is required by the circumstances or applicable law.

8.8.2 The National Chairperson may convene a Board meeting. The Secretary must also convene a meeting when requested in writing by the number of directors specified in the Board’s meeting procedures or required by law.

8.8.3 Each director must receive reasonable notice of a Board meeting, including its date, time, location or electronic access details and proposed agenda.

8.8.4 Notice may be given electronically, including by email or another approved communication method.

8.8.5 A Board meeting may be held in person, by telephone, by videoconference or through another communication method that allows participating directors to communicate adequately with one another.

8.8.6 The Board may invite a committee member, adviser, staff member or other person to attend a meeting for a specified purpose. An invitee who is not a director has no voting rights.

8.8.7 The Secretary must ensure that minutes are prepared and retained, recording attendance, declarations of interest, decisions, resolutions and other material matters.

8.8.8 The Board may adopt standing orders or meeting procedures that are consistent with this Constitution and applicable law.

8.9 Quorum

8.9.1 The quorum for a Board meeting shall be a majority of the directors then in office, rounded up to the next whole number.

8.9.2 A meeting must not conduct substantive business or pass a resolution unless a quorum is present.

8.9.3 A director who is not entitled to participate in a particular matter because of a conflict of interest must be excluded from the relevant deliberation and vote to the extent required by law or this Constitution. The quorum for that matter must be determined in accordance with applicable law and the relevant conflict-of-interest provisions.

8.9.4 If a quorum is not present within 30 minutes after the scheduled commencement time, the meeting must be adjourned or dealt with in accordance with the Board's meeting procedures.

8.9.5 The Secretary must record any failure to achieve a quorum and any resulting adjournment.

8.10 Voting

8.10.1 Each director entitled to vote on a matter has one vote.

8.10.2 A Board resolution is passed by a simple majority of votes cast by directors entitled to vote, unless this Constitution or applicable law requires a different threshold.

8.10.3 If the votes are equal, the motion is not carried. The Chairperson does not have a casting vote unless a lawful constitutional provision expressly provides otherwise.

8.10.4 A director must not vote on a matter where the director is prohibited from doing so by law or this Constitution.

8.10.5 Voting may take place by a show of hands, verbal confirmation, electronic voting or another method approved by the Board, provided the method permits the result to be reliably determined.

8.10.6 The minutes must record the resolution and, where appropriate, the outcome of the vote and any declared conflicts of interest.

8.11 Written Resolutions

8.11.1 The Board may pass a resolution without holding a meeting if the resolution is approved in writing by all directors entitled to vote on that resolution, to the extent permitted by the *Corporations Act 2001* (Cth) and this Constitution.

8.11.2 A written resolution may be circulated and signed or approved electronically, provided the identity of each approving director and the director's agreement to the resolution can be reliably established.

8.11.3 A written resolution must clearly state the proposed decision and the date on which it is taken to have been passed.

8.11.4 The Secretary must retain the resolution with Gotabgaa Australia Limited 's records and include it in the minutes or register of Board resolutions.

8.11.5 A written resolution must not be used to avoid a meeting or consultation where a meeting is required by law or where this Constitution expressly requires the matter to be decided at a meeting.

8.12 Vacancies

8.12.1 A vacancy occurs if a director:

a. resigns by written notice;

b. dies;

c. becomes disqualified from managing corporations under applicable law;

d. becomes incapable of acting as a director in circumstances recognised by law;

e. is removed in accordance with this Constitution and applicable law;

f. ceases to satisfy a lawful eligibility requirement; or

g. otherwise ceases to hold office under this Constitution or the Act.

8.12.2 The Board may appoint an eligible person to fill a casual vacancy, subject to clause 8.4 and any applicable statutory requirements.

8.12.3 A person appointed to fill a vacancy must provide written consent to act and complete all required statutory documentation.

8.12.4 The Board must arrange for a vacancy to be filled by election or other required process within a reasonable period and in accordance with this Constitution.

8.12.5 If a vacancy causes the Board to fall below the statutory minimum, the remaining directors must take prompt steps to restore compliance. Their authority to act during that period is limited by applicable law.

8.12.6 A vacancy does not automatically invalidate a decision properly made when a lawful quorum was present, unless otherwise provided by law.

8.13 Removal of Directors

8.13.1 A director may resign by giving written notice to Gotabgaa Australia Limited in accordance with the *Corporations Act 2001* (Cth).

8.13.2 A director may be removed from office by the members in accordance with the Act, this Constitution and any applicable notice and procedural requirements.

8.13.3 Where Gotabgaa Australia Limited is a public company, any removal of a director by members must comply with the applicable statutory requirements, including the requirements concerning notice of the proposed resolution and the director's opportunity to put their case.

8.13.4 Grounds that may prompt consideration of removal include:

a. serious or repeated breach of this Constitution;

b. serious misconduct or misuse of Company funds, property or confidential information;

c. failure to perform director responsibilities;

d. a material conflict of interest that is not properly managed;

e. conduct that seriously compromises Gotabgaa Australia Limited 's governance or reputation; or

f. disqualification or ineligibility under applicable law.

8.13.5 The Board may investigate concerns and make recommendations to members, but it must not use this clause to bypass any statutory right of members to remove a director or any statutory protection available to the director.

8.13.6 Allegations of misconduct must be handled fairly. The director must be informed of the material allegations and given a reasonable opportunity to respond, subject to applicable law.

8.13.7 A director who is the subject of a proposed removal must not improperly influence the process or use Company resources to obstruct a lawful decision.

8.13.8 Removal from a director position does not automatically terminate the person's membership of Gotabgaa Australia unless membership is separately terminated in accordance with this Constitution.

8.13.9 Gotabgaa Australia Limited must notify ASIC of a director's cessation of office within the applicable statutory period.

8.14 Remuneration and Expenses

8.14.1 Directors may be reimbursed for reasonable and properly documented expenses incurred in performing authorised duties on behalf of Gotabgaa Australia.

8.14.2 A director is not entitled to remuneration merely because they hold office as a director.

8.14.3 Any proposed remuneration for a director for services beyond ordinary director duties must be lawful, reasonable, properly authorised and consistent with Gotabgaa Australia Limited ’s not-for-profit status.

8.14.4 A director with a material personal interest in a proposed payment or arrangement must disclose that interest and comply with the applicable statutory and constitutional requirements concerning participation and voting.

8.14.5 The Board must ensure that payments to directors, officers, members or related parties are properly documented, transparent and made on reasonable terms for legitimate Company purposes.

8.14.6 No payment may be made for the purpose of distributing Gotabgaa Australia Limited ’s profits to a member or director.

8.14.7 Gotabgaa Australia Limited must maintain appropriate records of reimbursements, remuneration and related-party transactions and make any disclosures required by law.

ARTICLE 9 — NATIONAL OFFICE BEARERS

9.1 President

9.1.1 The President shall be the principal elected leader and public representative of Gotabgaa Australia, subject to the authority of the Board of Directors and this Constitution.

9.1.2 The President shall:
a. Provide strategic leadership and promote the vision, mission, objectives, and values of Gotabgaa Australia.
b. Chair meetings of the Board, National Governing Council, and General Membership where authorised by this Constitution.
c. Promote unity, cooperation, transparency, inclusion, and accountability among members and affiliated community groups.
d. Represent Gotabgaa Australia in official engagements, community forums, government consultations, and relevant stakeholder meetings.
e. Oversee the implementation of Board-approved policies, strategies, and programmes.
f. Work collaboratively with all office bearers, state and territory representatives, committees, and the Advisory Council.
g. Ensure that the organisation operates in accordance with this Constitution, applicable Australian law, and its approved policies.

9.1.3 The President shall not exercise powers reserved for the Board or General Membership and shall not unilaterally commit the organisation to significant financial, contractual, or legal obligations without proper authorisation.

9.2 Vice President/Deputy President

9.2.1 The Vice President, also referred to as the Deputy President, shall support the President in carrying out the responsibilities of the office.

9.2.2 The Vice President/Deputy President shall:
a. Assist the President in providing national leadership and coordinating organisational activities.
b. Act on behalf of the President during an absence, incapacity, resignation, or other temporary inability to perform the duties of office, subject to Board authorisation and this Constitution.
c. Support coordination between the national leadership, state and territory representatives, and programme committees.
d. Monitor the progress of Board-approved initiatives and report implementation challenges to the Board.
e. Promote collaboration, leadership development, and effective communication across the organisation.

9.2.3 The Vice President/Deputy President shall not automatically assume the office of President permanently upon a vacancy. Any permanent appointment or election shall follow the procedures prescribed by this Constitution.

9.3 Secretary

9.3.1 The Secretary shall be responsible for the organisation's governance administration, official records, meeting documentation, and formal communications, subject to applicable law and Board direction.

9.3.2 The Secretary shall:
a. Issue notices of meetings in accordance with this Constitution.
b. Prepare agendas in consultation with the President and relevant office bearers.
c. Record, maintain, and circulate minutes of Board and General Membership meetings.
d. Maintain the Constitution, policies, registers, resolutions, and other official organisational records.
e. Maintain or coordinate the maintenance of the membership register and records of office bearers, as appropriate.
f. Receive and distribute official correspondence and maintain records of significant communications.
g. Support compliance with applicable reporting, recordkeeping, and lodgement obligations.
h. Provide members with access to records where required by law or authorised under the organisation's policies.

9.3.3 The Secretary shall protect confidential information and ensure that records are maintained securely and made available only to authorised persons, subject to applicable law.

9.3.4 Where the Secretary is also appointed as Gotabgaa Australia Limited secretary under the Corporations Act 2001 (Cth), the statutory responsibilities and eligibility requirements applicable

to that appointment shall apply. Holding the organisational office of Secretary shall not, by itself, constitute appointment as company secretary.

9.4 Treasurer

9.4.1 The Treasurer shall oversee the organisation's financial administration and support the Board in maintaining proper financial governance and accountability.

9.4.2 The Treasurer shall:
a. Oversee the preparation of annual budgets, financial plans, and financial reports.
b. Monitor income, expenditure, cash flow, assets, liabilities, and financial commitments.
c. Ensure that financial transactions are properly authorised, documented, and recorded.
d. Present financial reports to the Board and General Membership at appropriate intervals.
e. Coordinate the preparation of annual financial statements and any required financial reporting.
f. Support the implementation of financial controls, banking procedures, procurement policies, and expenditure approval limits.
g. Monitor grants, donations, sponsorships, fundraising proceeds, and project funds in accordance with their conditions.
h. Notify the Board of significant financial risks, irregularities, or suspected misuse of organisational funds.

9.4.3 The Treasurer shall not independently approve transactions that exceed authorised limits or involve an unmanaged conflict of interest.

9.4.4 The Treasurer shall ensure that the organisation's funds are used to advance its objectives and are not distributed to members except for legitimate payments, reimbursements, or other permitted transactions authorised in accordance with this Constitution and applicable law.

9.5 Organising Secretary

9.5.1 The Organising Secretary shall coordinate the planning and administration of organisational activities, programmes, meetings, and community initiatives.

9.5.2 The Organising Secretary shall:
a. Coordinate the operational planning of national meetings, forums, consultations, and approved activities.
b. Support state and territory representatives in organising local programmes and national initiatives.
c. Develop activity schedules, implementation plans, and coordination arrangements in consultation with relevant committees.
d. Monitor attendance, participation, and logistical requirements for organisational activities.
e. Coordinate volunteers and programme support teams where authorised.
f. Maintain records of activities and provide reports on progress, challenges, and outcomes.

g. Work with the Events Director and relevant committees to ensure that activities are properly planned, resourced, and evaluated.

9.5.3 The Organising Secretary shall operate within approved budgets, policies, and delegated authority and shall not independently commit Gotabgaa Australia to expenditure or contractual obligations outside that authority.

9.6 Communications and Public Relations Director

9.6.1 The Communications and Public Relations Director shall oversee the organisation's public communications, information sharing, media engagement, and public profile.

9.6.2 The Director shall:
a. Develop and coordinate communications strategies and public information materials.
b. Maintain or oversee approved communication channels, including the website, newsletters, and social media platforms.
c. Promote accurate, respectful, and culturally appropriate communication about Gotabgaa Australia and its activities.
d. Coordinate media enquiries and public statements in consultation with the President or the Board.
e. Support communication between national leadership, members, state and territory representatives, and community stakeholders.
f. Promote the organisation's programmes, achievements, events, and opportunities.
g. Ensure that communications comply with applicable privacy, copyright, defamation, and other relevant legal requirements.
h. Maintain appropriate approval processes for official announcements and statements made on behalf of the organisation.

9.6.3 No office bearer, committee, or member shall represent a personal opinion as an official position of Gotabgaa Australia without proper authority.

9.7 Legal and Compliance Director

9.7.1 The Legal and Compliance Director shall support the Board in monitoring legal, regulatory, constitutional, and governance compliance.

9.7.2 The Director shall:
a. Monitor relevant legal and regulatory obligations affecting the organisation and bring material issues to the Board's attention.
b. Support periodic reviews of the Constitution, policies, procedures, and governance practices.
c. Maintain or coordinate a compliance register and compliance review schedule where approved by the Board.
d. Assist in identifying legal, governance, operational, and reputational risks.
e. Support the development of appropriate policies relating to conflicts of interest, complaints,

safeguarding, privacy, records management, and organisational conduct.
f. Coordinate access to qualified legal or professional advice when required and authorised.
g. Promote awareness of members' rights, responsibilities, and obligations under this Constitution.
h. Support lawful and procedurally fair governance and decision-making.

9.7.3 The Legal and Compliance Director shall not provide legal services requiring professional qualifications or authorisation unless appropriately qualified and authorised to do so.

9.7.4 The Director shall not independently determine disputes in which the Director has a personal interest or where impartiality may reasonably be questioned.

9.8 Projects and Investment Director

9.8.1 The Projects and Investment Director shall identify, develop, and coordinate projects and lawful economic initiatives that advance the objectives of Gotabgaa Australia.

9.8.2 The Director shall:
a. Identify opportunities for community development, employment, entrepreneurship, education, skills development, and business collaboration.
b. Develop project proposals, business cases, feasibility assessments, and implementation plans for consideration by the Board.
c. Identify potential grants, sponsorships, partnerships, and other lawful funding opportunities.
d. Coordinate approved projects and monitor their delivery, expenditure, risks, and outcomes.
e. Promote responsible entrepreneurship, professional networking, and economic participation among members.
f. Encourage partnerships with businesses, educational institutions, government agencies, and other community organisations.
g. Present project progress and evaluation reports to the Board.
h. Ensure that proposed investments and commercial activities are assessed for financial viability, legal compliance, risk, and consistency with the organisation's not-for-profit objectives .

9.8.3 The Director shall not independently invest organisational funds, borrow money, enter into major contracts, or establish a commercial undertaking on behalf of Gotabgaa Australia without the required Board approval and any other authorisation required by law.

9.8.4 Projects and investment activities shall advance the organisation's objectives . They shall not be used to provide unauthorised private benefits to office bearers, directors, members, or related parties.

9.9 Youth and Emerging Leaders Director

9.9.1 The Youth and Emerging Leaders Director shall promote the participation, leadership, education, wellbeing, and development of young people and emerging leaders within the Kalenjin community in Australia.

9.9.2 The Director shall:
a. Develop and coordinate youth leadership, mentoring, education, and professional development initiatives.
b. Encourage young people to participate in organisational governance, volunteering, community service, and decision-making.
c. Promote opportunities in employment, entrepreneurship, innovation, sports, culture, and further education.
d. Facilitate constructive engagement between young people, elders, professionals, and community leaders.
e. Support youth-led projects and initiatives consistent with the organisation's objectives and approved policies.
f. Promote inclusion, respectful relationships, and the prevention of discrimination, bullying, exploitation, and other harmful conduct.
g. Consult young members and report their priorities and concerns to the Board.
h. Work with the Women's Affairs and Inclusion Director, Sports Director, Cultural Ambassador Director, and relevant committees on shared initiatives.

9.9.3 Activities involving children and young people shall comply with applicable safeguarding requirements, including relevant state or territory laws and organisational policies.

9.10 Women's Affairs and Inclusion Director

9.10.1 The Women's Affairs and Inclusion Director shall promote the meaningful participation, leadership, empowerment, and inclusion of women and underrepresented members within Gotabgaa Australia.

9.10.2 The Director shall:
a. Promote women's participation in organisational leadership, governance, cultural activities, and community decision-making.
b. Support initiatives in entrepreneurship, employment, education, professional networking, mentoring, and skills development for women.
c. Identify barriers to participation and recommend practical measures to improve inclusion and equal opportunity.
d. Encourage intergenerational engagement and collaboration among women, youth, elders, and other community members.
e. Promote dignity, respect, safety, and freedom from discrimination and harassment.
f. Consult women and relevant community groups on issues affecting their participation and wellbeing.
g. Work with other office bearers and committees to integrate inclusion considerations into

organisational programmes.
h. Present reports and recommendations to the Board on relevant priorities and initiatives.

9.10.3 The Director shall promote women's representation across the organisation as a whole. The existence of this portfolio shall not restrict women's participation in other leadership positions or imply that inclusion is solely the responsibility of this Director.

9.11 Sports Director

9.11.1 The Sports Director shall promote sport, recreation, teamwork, health, and positive community engagement through inclusive sporting activities.

9.11.2 The Director shall:
a. Coordinate the development of approved sporting programmes, competitions, and recreational activities.
b. Encourage participation by young people, women, men, families, and members of different abilities.
c. Liaise with sporting clubs, associations, venues, sponsors, and relevant community organisations.
d. Promote sportsmanship, fair play, respect, safety, and responsible conduct.
e. Develop proposals for sporting events, teams, training activities, and tournaments for approval where required.
f. Work with the Youth and Emerging Leaders Director and Events Director on shared activities.
g. Ensure that sporting activities comply with applicable safety requirements, relevant sporting rules, and organisational policies.
h. Report on participation, outcomes, expenditure, and future opportunities.

9.12 Cultural Ambassador Director

9.12.1 The Cultural Ambassador Director shall promote the preservation, celebration, and respectful transmission of Kalenjin culture, language, heritage, and traditions.

9.12.2 The Director shall:
a. Promote Kalenjin language, history, cultural knowledge, arts, customs, and heritage.
b. Support cultural education and intergenerational knowledge-sharing between elders, families, and young people.
c. Coordinate with the **Gotab Miyoot Australia Advisory Council** on cultural protocols and matters requiring elders' guidance.
d. Support cultural performances, exhibitions, festivals, educational activities, and other approved initiatives.
e. Encourage respectful cultural exchange and positive relationships with other Australian communities.
f. Promote accurate and inclusive representation of Kalenjin identity and heritage.
g. Encourage participation by members across generations and backgrounds.

h. Advise the Board on cultural considerations relevant to organisational activities and public representation.

9.12.3 The Cultural Ambassador Director shall respect the role of the **Gotab Miyoot Australia Advisory Council** and shall not claim authority to speak for all elders or determine cultural matters reserved for an authorised advisory or community process.

9.13 Events Director

9.13.1 The Events Director shall coordinate the planning, delivery, and evaluation of approved national events and support local events undertaken within the organisation's governance framework.

9.13.2 The Director shall:
a. Develop event concepts, schedules, budgets, and operational plans for approval where required.
b. Coordinate venues, suppliers, volunteers, performers, speakers, participants, and event logistics.
c. Work with the Organising Secretary, Treasurer, Communications and Public Relations Director, Sports Director, and Cultural Ambassador Director on relevant activities.
d. Ensure that events are inclusive, culturally respectful, accessible where practicable, and appropriately managed.
e. Support compliance with venue conditions, permits, insurance arrangements, safety requirements, and other applicable obligations.
f. Maintain event records and prepare reports on attendance, expenditure, outcomes, and lessons learned.
g. Identify opportunities for partnerships and sponsorships, subject to the organisation's approval procedures.
h. Ensure that events are delivered within approved budgets and delegated authority.

9.14 Spiritual Director

9.14.1 The Spiritual Director shall support the organisation's spiritual and reflective activities in a manner that respects the diversity of beliefs and practices within the Kalenjin community.

9.14.2 The Director shall:
a. Encourage values of compassion, integrity, peace, mutual respect, service, and reconciliation.
b. Support voluntary spiritual, reflective, or faith-related activities approved by the organisation.
c. Promote respectful dialogue among members of different faiths, traditions, and personal beliefs.
d. Work with community leaders and relevant advisers on spiritual or pastoral matters where appropriate.
e. Encourage peaceful and constructive approaches to community disagreements.
f. Support activities that promote wellbeing, solidarity, and community service.

g. Respect the rights, dignity, beliefs, and lawful freedoms of all members.
h. Refer matters requiring specialised pastoral, counselling, or professional support to suitably qualified persons or relevant services.

9.14.3 The Spiritual Director shall not impose religious beliefs or practices on members, determine membership eligibility on the basis of religion, or exercise authority over the organisation's legal, financial, or governance decisions by virtue of this office.

9.15 Men's Council

9.15.1 Gotabgaa Australia may establish a Men's Council as a consultative and programme-support body to encourage the constructive participation, leadership, wellbeing, and community contribution of men.

9.15.2 The Men's Council may:
a. Provide a forum for men to discuss community priorities, responsibilities, and constructive solutions to shared challenges.
b. Promote positive role modelling, responsible leadership, mentoring, and intergenerational engagement.
c. Support initiatives relating to family wellbeing, community service, education, employment, entrepreneurship, and personal development.
d. Encourage respectful relationships, non-violence, inclusion, and peaceful conflict resolution.
e. Work collaboratively with the Women's Affairs and Inclusion Director, Youth and Emerging Leaders Director, Gotab Miyoot Australia Advisory Council, and other relevant bodies.
f. Submit recommendations and programme proposals to the Board for consideration.
g. Support approved community activities and contribute to the organisation's mission and objectives .

9.15.3 The Men's Council shall operate under written terms of reference approved by the Board. Its membership, leadership, appointment arrangements, tenure, meetings, and reporting obligations shall be determined in those terms of reference, consistently with this Constitution.

9.15.4 The Men's Council shall not operate as a separate legal entity or exercise powers reserved for the Board or General Membership. It shall not make financial or contractual commitments on behalf of Gotabgaa Australia unless expressly authorised.

9.16 General Duties and Accountability of Office Bearers

9.16.1 Every national office bearer shall:
a. Act honestly, in good faith, and in the best interests of **Gotabgaa Australia Limited**.
b. Exercise their powers for a proper purpose and within the authority conferred by this Constitution and Board resolutions.
c. Comply with applicable laws, this Constitution, and approved organisational policies.
d. Declare actual, potential, or perceived conflicts of interest and comply with applicable

conflict-management procedures.
e. Maintain confidentiality where required and protect organisational records, funds, property, and reputation.
f. Treat members, volunteers, stakeholders, and community partners with dignity and respect.
g. Provide reports on the activities and responsibilities of their portfolio as required by the Board.
h. Cooperate with other office bearers and avoid unnecessary duplication of responsibilities.
i. Refrain from using their position or organisational resources for unauthorised personal or private benefit.

9.16.2 Office bearers shall be accountable to the Board and, where applicable, to the General Membership in accordance with this Constitution.

9.16.3 The Board may establish written position descriptions, performance expectations, delegations, reporting requirements, and portfolio-specific procedures, provided these are consistent with this Constitution and applicable law.

9.17 Appointment, Tenure, Vacancies, and Removal

9.17.1 National office bearers shall be elected or appointed in accordance with Article 8 and any applicable election procedures adopted under this Constitution.

9.17.2 An office bearer shall hold office for the term specified in Article 8 or the applicable provisions of this Constitution, unless the person resigns, becomes ineligible, is removed, or otherwise ceases to hold office in accordance with this Constitution and applicable law.

9.17.3 A vacancy in an office shall be filled using the procedure prescribed by this Constitution. Any interim appointment shall be subject to the applicable eligibility, approval, and reporting requirements.

9.17.4 An office bearer may resign by giving written notice to the Board or the person designated under the organisation's governance procedures.

9.17.5 An office bearer may be suspended or removed only in accordance with this Constitution, applicable procedural fairness requirements, and any mandatory legal requirements.

9.17.6 Where an office bearer is also a director of Gotabgaa Australia Limited, any cessation or removal from the office-bearing position shall be distinguished from removal as a director. The latter must comply with the applicable requirements of the Corporations Act 2001 (Cth).

9.18 Relationship Between Office Bearers and Directors

9.18.1 The titles and responsibilities established under this Article describe organisational offices and portfolios. They do not, by themselves, confer appointment as a director of Gotabgaa Australia Limited.

9.18.2 A person shall become a director only through a valid election or appointment made in accordance with this Constitution and applicable law.

9.18.3 Office bearers who are directors shall comply with the duties and responsibilities imposed on directors by the Corporations Act 2001 (Cth), including duties relating to care and diligence, good faith, proper use of position and information, and conflicts of interest.

9.18.4 The Board may allocate portfolios and delegate responsibilities to office bearers, committees, or other authorised persons, subject to the Board's continuing legal responsibilities and any restrictions in this Constitution or applicable law.

9.18.5 In the event of inconsistency between an office bearer's portfolio responsibilities and a lawful decision of the Board, the Board's decision shall prevail, subject to this Constitution and applicable law.

ARTICLE 10 — COUNCIL OF ELDERS AND ADVISERS (ARAP TERA)

10.1 Establishment

10.1.1 There shall be established within the **Gotabgaa Australia Limited** (hereinafter referred to as "Gotabgaa Australia Limited") a Council of Elders and Advisers, to be known as the Arap Tera Council (hereinafter referred to as "the Council").

10.1.2 The Council shall serve as an independent advisory body to Gotabgaa Australia Limited, providing wisdom, guidance, cultural insight, institutional counsel, and strategic advice in support of Gotabgaa Australia Limited 's vision, mission, objectives, and long-term sustainability.

10.1.3 The Council shall uphold the values of integrity, accountability, respect, inclusiveness, unity, intergenerational responsibility, and the preservation of cultural heritage, while recognising Gotabgaa Australia Limited 's obligations under applicable Australian law.

10.1.4 The Council shall operate in accordance with this Constitution and any policies or procedures duly adopted by Gotabgaa Australia Limited, provided that such policies or procedures are consistent with this Constitution and applicable law.

10.2 Composition

10.2.1 The Council shall comprise persons of recognised integrity, experience, wisdom, professional competence, cultural knowledge, or demonstrated service to the community who can contribute meaningfully to Gotabgaa Australia Limited ’s governance and development.

10.2.2 The composition of the Council may include:

a) Elders and respected community leaders;

b) persons with knowledge of cultural traditions, customary values, and community heritage;

c) former national office bearers or former directors of Gotabgaa Australia Limited;

d) professionals with expertise in law, finance, governance, business, investment, education, community development, or other relevant disciplines;

e) persons with experience in diplomacy, public administration, institutional leadership, or international relations; and

f) other suitably qualified individuals whose knowledge and experience are considered beneficial to Gotabgaa Australia Limited.

10.2.3 The Council shall, where practicable, reflect an appropriate balance of experience, cultural representation, professional expertise, gender, and generational perspectives.

10.2.4 The Council shall elect a Chairperson and may elect a Deputy Chairperson from among its members. It may also designate a secretary to maintain records of its proceedings and advisory recommendations.

10.2.5 The size, internal organisation, and meeting arrangements of the Council shall be determined by regulations approved in accordance with this Constitution.

10.3 Appointment

10.3.1 Members of the Council shall be appointed in accordance with procedures approved by the Board, subject to any nomination, consultation, or ratification requirements prescribed by this Constitution.

10.3.2 In selecting members, due consideration shall be given to personal integrity, independence of judgement, relevant knowledge, demonstrated service, cultural standing where applicable, and the ability to act in the best interests of Gotabgaa Australia Limited.

10.3.3 The Board may invite nominations from members of Gotabgaa Australia Limited, recognised community institutions, professional bodies, and other relevant stakeholders.

10.3.4 Each appointment shall be recorded in writing, specifying the member’s term of service, responsibilities, and any applicable conditions of appointment.

10.3.5 Members shall ordinarily serve for a term of three (3) years and shall be eligible for reappointment, subject to the appointment procedures and any limits prescribed by Gotabgaa Australia Limited ’s regulations.

10.3.6 A member may resign by giving written notice to the Chairperson of the Council and the Board.

10.3.7 A member may be removed from the Council for serious misconduct, incapacity, persistent failure to discharge assigned responsibilities, material breach of confidentiality, undisclosed conflict of interest, or other justifiable grounds, following a fair process that provides the member with an opportunity to respond.

10.3.8 A vacancy arising within the Council shall be filled in accordance with the established appointment procedures. The remaining members may continue to perform the Council’s advisory functions, provided that the Council maintains a sufficient number of members to conduct its business effectively.

10.4 Role and Functions

10.4.1 The principal role of the Council shall be to provide independent, non-executive advice and guidance to Gotabgaa Australia Limited on matters affecting its governance, strategic direction, institutional integrity, community relationships, and long-term interests.

10.4.2 Without limiting the generality of Clause 10.4.1, the Council shall:

a) Advise the Board on Gotabgaa Australia Limited ’s vision, mission, strategic priorities, and long-term development.

b) Provide guidance on governance standards, ethical leadership, accountability, transparency, and institutional integrity.

c) Offer recommendations on major projects, investments, partnerships, and initiatives referred to it by the Board.

d) Support the resolution of significant internal disputes through dialogue, mediation, and consensus-building, where appropriate and where the parties consent.

e) Encourage unity, cooperation, mutual respect, and constructive engagement among members, office bearers, directors, and stakeholders.

f) Advise on succession planning, leadership development, institutional continuity, and the preservation of organisational knowledge.

g) Identify emerging risks, reputational concerns, and strategic challenges that may affect Gotabgaa Australia Limited.

h) Promote constructive relationships between Gotabgaa Australia Limited and relevant community, professional, cultural, and institutional stakeholders.

i) Provide independent observations on proposed constitutional amendments, governance reforms, and significant policy changes when requested.

j) Perform any other advisory function assigned to it by the Board or authorised under this Constitution.

10.4.3 The Council may submit written recommendations, advisory opinions, or reports to the Board on matters within its mandate.

10.4.4 The Board shall give due consideration to recommendations submitted by the Council and may request clarification or further advice where necessary.

10.4.5 The Council shall not exercise executive authority, direct the day-to-day operations of Gotabgaa Australia Limited, or make binding decisions on behalf of the Board unless a specific power is expressly conferred upon it by this Constitution and permitted by applicable law.

10.4.6 The Council shall not exercise the powers reserved to the Board, the national office bearers, the members in general meeting, or any other constitutional organ of Gotabgaa Australia Limited.

10.5 Cultural and Traditional Advisory Role

10.5.1 The Council shall provide guidance on cultural values, traditions, customary practices, community heritage, and intergenerational responsibilities relevant to Gotabgaa Australia Limited ’s identity and activities.

10.5.2 In performing this function, the Council may:

a) Advise on the respectful recognition and preservation of cultural traditions, language, heritage, and customary knowledge.

b) Promote intergenerational dialogue and the responsible transmission of cultural knowledge and community values.

c) Provide guidance on culturally appropriate communication, ceremonies, commemorations, and community engagement.

d) Advise the Board on cultural sensitivities that may arise in Gotabgaa Australia Limited ’s policies, partnerships, programmes, and public representation.

e) Encourage the inclusion of diverse cultural perspectives and the respectful participation of community members in Gotabgaa Australia Limited ’s activities.

f) Support peaceful dialogue and reconciliation where cultural misunderstandings or community tensions arise.

g) Advise on the ethical and appropriate use, representation, and protection of cultural knowledge, symbols, practices, and expressions.

10.5.3 The Council shall exercise its cultural and traditional advisory role with respect for the dignity, rights, beliefs, and lawful interests of all persons and communities concerned.

10.5.4 Cultural or traditional advice provided by the Council shall not, of itself, override this Constitution, applicable Australian law, the rights of Company members, or the lawful authority of the Board and other constitutional organs.

10.5.5 Where cultural matters concern a particular community, group, or tradition, the Council shall, where appropriate, consult recognised representatives or knowledge holders from that community before providing formal advice.

10.5.6 The Council shall respect the confidentiality, ownership, and any applicable restrictions governing culturally sensitive knowledge and shall not authorise its disclosure or commercial use without the appropriate consent and legal authority.

10.6 Independence

10.6.1 The Council shall perform its advisory functions independently, impartially, and in good faith, guided by the interests, objectives, and constitutional principles of Gotabgaa Australia Limited.

10.6.2 Members of the Council shall exercise independent judgement and shall not allow personal interests, external pressure, political affiliations, commercial relationships, or private arrangements to improperly influence their advice.

10.6.3 A member who has an actual, potential, or perceived conflict of interest in a matter under consideration shall disclose that conflict promptly and comply with the applicable conflict-of-interest policy, including any requirement to withdraw from deliberations.

10.6.4 Members shall preserve the confidentiality of information received through their Council duties, except where disclosure is authorised, required by law, or otherwise lawfully justified.

10.6.5 The Council shall not be subject to improper interference by any individual, office bearer, director, member, external organisation, or other stakeholder in the exercise of its independent advisory judgement.

10.6.6 Nothing in this Article shall exempt the Council or its members from Gotabgaa Australia Limited ’s Constitution, applicable governance requirements, lawful directions within the authority of the relevant constitutional organs, or applicable Australian law.

10.6.7 The Council shall not use its advisory position to obtain personal benefits, confer improper advantages on third parties, or influence Company decisions for purposes inconsistent with Gotabgaa Australia Limited ’s interests.

10.7 Relationship with the Board

10.7.1 The Council shall maintain a constructive, respectful, and professional relationship with the Board, recognising the distinction between independent advice and executive or fiduciary decision-making authority.

10.7.2 The Board shall retain responsibility for Gotabgaa Australia Limited ’s governance, strategic oversight, management supervision, and decisions assigned to it under this Constitution and applicable law.

10.7.3 The Board may refer matters to the Council for advice and may request written opinions, risk assessments, cultural guidance, or recommendations on significant strategic and institutional questions.

10.7.4 The Council may, on its own initiative, submit recommendations to the Board on matters falling within its mandate, provided that such recommendations do not interfere with the lawful functions of other constitutional organs.

10.7.5 The Chairperson of the Council may be invited to attend meetings of the Board when matters relevant to the Council’s mandate are being considered. Attendance shall ordinarily be in an advisory capacity and shall not confer voting rights unless the individual separately holds a lawful voting position on the Board.

10.7.6 The Council and the Board shall establish appropriate channels for communication, consultation, the submission of recommendations, and the monitoring of advisory matters referred to the Council.

10.7.7 The Board shall consider the Council’s recommendations in good faith but shall not be bound by them unless otherwise expressly provided in this Constitution or by a lawful resolution of Gotabgaa Australia Limited.

10.7.8 Where the Board decides not to adopt a material recommendation of the Council, it may record the reasons for its decision in the relevant governance records, particularly where the recommendation concerns significant cultural, ethical, reputational, or long-term institutional interests.

10.7.9 The Council shall not independently enter into contracts, incur financial obligations, commit Company resources, appoint or dismiss Company employees, or represent Gotabgaa Australia Limited in legally binding transactions unless expressly authorised in writing by the Board and permitted by this Constitution and applicable law.

10.7.10 The Council shall submit an annual advisory report to the Board summarising its activities, principal recommendations, matters referred to it, and any governance or cultural issues requiring further consideration.

10.7.11 Any disagreement between the Council and the Board shall be addressed through consultation, documented deliberation, and the dispute-resolution procedures established under this Constitution. The existence of such disagreement shall not, of itself, suspend the lawful authority or operations of either body.

ARTICLE 11 — ELECTIONS

11.1 Election Principles

11.1.1 All elections of Gotabgaa Australia Limited shall be conducted in accordance with this Constitution, the **Gotabgaa Australia Limited** National Elections Act (2026), where applicable, and the Corporations Act 2001 (Cth), as amended from time to time.

11.1.2 Elections shall be free, fair, transparent, inclusive, accountable and conducted with integrity, impartiality and respect for the rights of members.

11.1.3 Every eligible member shall have an equal opportunity to participate in elections, nominate candidates, vote and contest for office, subject to the eligibility requirements of this Constitution and applicable law.

11.1.4 Elections shall promote gender balance, regional diversity, intergenerational representation and unity among **Gotabgaa Australia Limited** members.

11.1.5 No person shall manipulate an election, intimidate voters, engage in electoral fraud, use hate speech or tribalism, or misuse Gotabgaa Australia Limited 's resources, position or communication platforms for personal campaigning.

11.1.6 **Gotabgaa Australia Limited** shall not endorse any candidate in its institutional capacity. Candidates shall conduct issue-based campaigns that promote peaceful participation, mutual respect and the objectives of Gotabgaa Australia Limited.

11.1.7 The election of national office-bearers shall be distinguished from the appointment or election of Directors of Gotabgaa Australia Limited. Any election or appointment to the Board of Directors shall comply with this Constitution and the applicable provisions of the Corporations Act 2001 (Cth).

11.2 Election Cycle

11.2.1 National elections shall ordinarily be held every three (3) years, unless a different term is expressly prescribed elsewhere in this Constitution or approved through a lawful constitutional amendment.

11.2.2 Elections shall be conducted before the expiry of the term of the serving office-bearers to ensure an orderly transition of leadership.

11.2.3 The Electoral Committee shall publish an election timetable specifying nomination opening and closing dates, candidate verification, the campaign period, any candidate debates, the voting period and the date for announcing results.

11.2.4 The election timetable shall provide reasonable notice to members and sufficient time for nominations, verification, campaigning and voting.

11.2.5 The term of each elected office-bearer shall commence upon certification of the election results, or on another date expressly prescribed by this Constitution.

11.2.6 Where an election is delayed by exceptional circumstances, the Electoral Committee shall notify members of the reasons and recommend a lawful revised timetable. No extension of an office-bearer's term shall occur contrary to this Constitution or applicable law.

11.2.7 Elections for Directors shall be conducted at a general meeting of members, or through another lawful procedure permitted by this Constitution and the Corporations Act 2001 (Cth).

11.3 Eligibility to Vote

11.3.1 A person shall be eligible to vote in a national election if that person:

(a) Is a registered member of **Gotabgaa Australia Limited** in accordance with this Constitution;

(b) Meets the applicable membership qualifications, including any requirement relating to Kalenjin identity and residence in Australia established by this Constitution;

(c) Is recorded on the official membership register and the electoral register;

(d) Has completed the official membership registration process at least thirty (30) days before election day; and

(e) Is not otherwise disqualified from voting under this Constitution or applicable law.

11.3.2 The Electoral Committee shall maintain a secure and accurate electoral register based on Gotabgaa Australia Limited 's membership records.

11.3.3 The electoral register shall close thirty (30) days before election day. The register shall be reopened for updating after the election results have been certified, subject to Gotabgaa Australia Limited 's continuing membership obligations.

11.3.4 Members shall be given a reasonable opportunity to verify their registration details and request correction of errors before the register closes.

11.3.5 Each eligible member shall have one vote in an election for a particular office, subject to any applicable statutory voting requirements and the provisions governing company membership.

11.3.6 No member shall vote more than once for the same office in the same election. Appropriate safeguards shall be maintained to prevent duplicate voting while protecting voter anonymity.

11.3.7 Nothing in this Article shall restrict a member's statutory voting rights in a general meeting or on a company resolution. Where a company resolution is being decided, the applicable statutory and constitutional voting rules shall prevail.

11.4 Nomination of Candidates

11.4.1 The Electoral Committee shall invite nominations for all elective positions in accordance with the published election timetable.

11.4.2 A candidate for national office shall:

(a) Be a registered member of GOTABGAA Australia;

(b) Meet the qualifications prescribed for the particular office under this Constitution;

(c) Have no disciplinary sanction within the preceding three (3) years, subject to the applicable disciplinary procedures and any lawful review or appeal;

(d) Be willing and able to discharge the responsibilities of the office;

(e) Consent to the nomination and agree to comply with Gotabgaa Australia Limited 's Constitution, election rules and code of conduct; and

(f) Satisfy any additional lawful eligibility requirements prescribed for the position.

11.4.3 Every nomination shall be submitted in the prescribed form and within the nomination period. The Electoral Committee may require evidence of membership, candidate consent and any other relevant qualification.

11.4.4 The Electoral Committee shall verify nominations and communicate acceptance or rejection to each candidate, giving reasons for any rejection.

11.4.5 A candidate whose nomination is rejected shall have an opportunity to seek review by the Electoral Committee or an independent reviewer appointed for that purpose before the final candidate list is published.

11.4.6 The final list of qualified candidates shall be published to members within the election timetable.

11.4.7 Candidates for President and Vice-President shall satisfy the representation requirements set out in this Constitution. Where the Constitution requires that the two office-bearers come from different States or be of different genders, the Electoral Committee shall apply those requirements consistently and transparently, subject to applicable law.

11.4.8 A person serving on the Electoral Committee shall not contest for an elective national position while serving on that Committee. Any resignation or cessation of electoral duties required to permit future candidacy shall occur before the nomination process, in accordance with the election rules.

11.4.9 No candidate shall use Company funds, property, official communication channels or privileged access to membership information for an unfair electoral advantage.

11.5 Electoral Committee

11.5.1 An independent Electoral Committee, known as the GOTABGAA National Electoral Body (GNEB), shall be responsible for planning, conducting, supervising and certifying national elections.

11.5.2 The Electoral Committee shall comprise seven (7) members, reflecting the following representative functions:

(a) National Electoral Chairperson;

(b) Women's Representative;

(c) Elders Representative;

(d) Diaspora/Regional Representative;

(e) Pastoral Representative;

(f) Technology and Compliance Officer; and

(g) Youth Representative.

11.5.3 The composition of the Electoral Committee shall promote gender balance, regional diversity and intergenerational representation.

11.5.4 Members of the Electoral Committee shall be appointed through a transparent and consultative process prescribed by the Constitution or approved election regulations. They shall act independently and shall not take instructions from any candidate or the National Executive concerning the conduct or outcome of an election.

11.5.5 A member of the Electoral Committee shall disclose any actual, potential or perceived conflict of interest. A person with a material conflict concerning a candidate or election matter shall not participate in the relevant decision.

11.5.6 The Electoral Committee shall:

(a) Publish election dates, procedures and candidate requirements;

(b) Maintain and verify the electoral register;

(c) Receive and vet nominations;

(d) Approve and supervise the electronic voting platform;

(e) Ensure the security, accessibility, confidentiality and integrity of the voting process;

(f) Supervise voting, counting, tallying and verification;

(g) Publish election results and certify elected office-bearers;

(h) Receive and determine election complaints in accordance with this Article;

(i) Issue certificates of election to successful candidates;

(j) Maintain election records for at least five (5) years, subject to applicable privacy, data protection and record-retention laws; and

(k) Submit an election report to Gotabgaa Australia Limited after completion of the process.

11.5.7 The Electoral Committee shall act impartially and maintain the confidentiality of election-related information. It shall keep adequate records of its decisions and the reasons for those decisions.

11.5.8 The Electoral Committee may issue detailed election procedures consistent with this Constitution. Such procedures shall not override this Constitution or applicable law.

11.6 Voting Procedures

11.6.1 All national elections shall be conducted through a secure electronic voting platform approved and supervised by the Electoral Committee, unless another method is lawfully authorised under this Constitution.

11.6.2 Before voting begins, the Electoral Committee shall publish the final list of candidates, voting instructions, the opening and closing times, the duration of voting and the procedures for reporting technical difficulties.

11.6.3 Each eligible voter shall receive a unique, secure voting link, code or other authentication method.

11.6.4 Voting shall remain open for at least twenty-four (24) hours, unless an extension is required to address a verified technical failure or other exceptional circumstance.

11.6.5 The voting system shall be designed to ensure:

(a) One vote per eligible member for each office being contested;

(b) Voter anonymity and ballot confidentiality;

(c) Accurate and impartial tallying;

(d) Protection against unauthorised access, impersonation, duplicate voting and manipulation; and

(e) Appropriate audit trails that allow verification of the election without improperly disclosing individual voting choices.

11.6.6 Once a vote has been validly submitted, it shall not be changed, except where a correction or replacement is necessary to remedy a verified system error and can be undertaken consistently with ballot secrecy and electoral integrity.

11.6.7 The candidate who receives the highest number of valid votes for an office shall be declared elected, subject to any special voting threshold or election method prescribed by this Constitution.

11.6.8 Where candidates receive an equal number of votes, the Electoral Committee shall apply a transparent tie-breaking procedure consistent with this Constitution. Any casting vote by the Electoral Chairperson shall be exercised only where expressly authorised by this Constitution and applicable law.

11.6.9 The Electoral Committee shall announce provisional results after tallying and verification. Final results shall be certified after the period for lodging complaints has expired or all timely complaints have been resolved, as applicable.

11.6.10 Company resolutions, including resolutions concerning the appointment or removal of Directors, shall be voted on in the manner required by the Corporations Act 2001 (Cth) and this Constitution. Electronic voting under this Article shall not displace any mandatory statutory requirement.

11.7 Electronic Voting

11.7.1 Gotabgaa Australia Limited may conduct elections electronically using a secure digital platform approved by the Electoral Committee.

11.7.2 The platform shall provide appropriate authentication, ballot secrecy, system security, reliable tallying, fraud prevention, auditability and accessibility for eligible members.

11.7.3 The Electoral Committee shall ensure that members receive clear instructions on how to access the platform, verify their eligibility and obtain assistance with technical difficulties.

11.7.4 Gotabgaa Australia Limited shall take reasonable steps to protect personal information and election records in accordance with applicable Australian privacy and data protection laws.

11.7.5 The Electoral Committee shall establish procedures for responding to system outages, suspected cyberattacks, compromised voting credentials, duplicate submissions and other incidents that may affect the integrity of an election.

11.7.6 Where a serious technical failure materially affects the fairness or reliability of an election, the Electoral Committee may suspend voting, extend the voting period or recommend that the affected election be rerun, provided the decision is reasoned, documented and consistent with this Constitution and applicable law.

11.7.7 Any electronic voting process used for a statutory company resolution or general meeting shall also comply with the applicable requirements governing member meetings, voting, proxies and participation under the Corporations Act 2001 (Cth).

11.7.8 Access to voting data shall be restricted to authorised persons who require it to administer, secure, audit or resolve a genuine election matter. Information shall not be used for campaigning or any unrelated purpose.

11.8 Election Disputes

11.8.1 Any eligible voter or candidate may lodge a complaint concerning an election, nomination, voting procedure, tally, declaration of results or alleged breach of this Article.

11.8.2 A complaint shall be submitted in writing to the Electoral Committee within forty-eight (48) hours after the announcement of provisional results. It shall identify the matter in dispute, provide the grounds for the complaint and include available supporting evidence.

11.8.3 The Electoral Committee shall acknowledge the complaint and provide affected parties with a reasonable opportunity to respond.

11.8.4 Complaints shall be considered impartially, confidentially and promptly. A Committee member who is directly involved in the dispute or has a material conflict of interest shall not participate in its determination.

11.8.5 The Electoral Committee may examine election records, audit logs, relevant documents and other admissible evidence necessary to determine the complaint, subject to confidentiality and privacy obligations.

11.8.6 The Electoral Committee may:

(a) Dismiss a complaint that is unsupported or without merit;

(b) Direct the correction of a verified administrative or counting error;

(c) Order a recount or independent audit where justified;

(d) Disqualify a candidate only were permitted by this Constitution, applicable law and fair procedures; or

(e) Recommend or direct a fresh election for an affected office where a material irregularity has compromised the integrity or fairness of the result.

11.8.7 The Electoral Committee shall issue a written decision stating its findings and reasons within a reasonable period. As far as practicable, complaints shall be resolved in time to permit certification of the results within seventy-two (72) hours after resolution of the relevant disputes.

11.8.8 A person dissatisfied with a decision may seek review through any independent appeal process established under this Constitution. The appeal procedure shall identify the decision-maker, time limit and available remedies.

11.8.9 No internal election decision shall exclude a member's right to seek relief from a court or tribunal with jurisdiction, or limit any right or remedy available under applicable law.

11.8.10 The Electoral Committee shall certify the final results after all timely complaints and appeals that may affect the outcome have been resolved or otherwise dealt with in accordance with the applicable rules.

11.9 Casual Vacancies

11.9.1 A casual vacancy in an elected national office shall arise where the office-bearer dies, resigns in writing, becomes disqualified, is lawfully removed, or is otherwise unable to continue in office under this Constitution.

11.9.2 Where the office of President becomes vacant, the Vice-President shall act as President until a replacement is elected or appointed in accordance with this Constitution, provided that such acting arrangement is consistent with Gotabgaa Australia Limited 's governance requirements.

11.9.3 Where another national office becomes vacant, the National Executive may appoint an eligible member to act temporarily in the vacant office, subject to the approval or oversight required by this Constitution.

11.9.4 A temporary appointment shall not confer a permanent right to the office. The vacancy shall be filled through a by-election or other lawful procedure prescribed by this Constitution,

unless the remaining term is so short that this Constitution expressly permits the vacancy to be filled at the next scheduled election.

11.9.5 Where a by-election is required, the Electoral Committee shall publish a timetable and conduct the election in accordance with this Article.

11.9.6 A person appointed to fill a casual vacancy shall meet the eligibility requirements for the office and shall serve only for the remainder of the unexpired term, unless otherwise provided by this Constitution.

11.9.7 A casual vacancy on the Board of Directors shall be dealt with separately in accordance with the provisions governing Directors and the applicable requirements of the Corporations Act 2001 (Cth). An appointment to a national office shall not, by itself, constitute appointment as a Director.

11.9.8 All appointments, by-elections and transitions arising from casual vacancies shall be recorded in Gotabgaa Australia Limited 's official records and communicated to members.

11.9.9 Outgoing office-bearers shall hand over all Company documents, assets, records, credentials and responsibilities within fourteen (14) days after certification of the relevant election or appointment, or within another period approved in accordance with this Constitution.

ARTICLE 12 — MEMBERS' MEETINGS

12.1 Annual General Meeting

12.1.1 Gotabgaa Australia Limited shall convene an Annual General Meeting (AGM) in each financial year in accordance with this Constitution and applicable Australian law.

12.1.2 The AGM shall be held within the period prescribed by applicable legislation. Where Gotabgaa Australia Limited is registered as a public company limited by guarantee, the Board shall ensure compliance with the statutory AGM requirements applicable to that company.

12.1.3 The principal purposes of the AGM shall be to:

a) Receive and consider the annual report of the Board on the activities, achievements, challenges, and strategic direction of Gotabgaa Australia Limited.

b) Receive and consider the financial statements and any directors' report, auditor's report, or other financial reports required by law.

c) Elect or confirm the appointment of national office bearers and directors where their terms expire or elections are due under this Constitution.

d) Consider the appointment or removal of an auditor or other authorised assurance provider, where applicable.

e) Consider motions, resolutions, constitutional amendments, and other matters properly submitted for consideration.

f) Provide members with an opportunity to question the Board and national office bearers concerning the management, finances, governance, and performance of Gotabgaa Australia Limited.

g) Consider reports or recommendations submitted by the Council of Elders and Advisers (Arap Tera), where relevant.

h) Consider any other business properly included in the meeting notice or lawfully permitted to be considered at the AGM.

12.1.4 The Board shall ensure that members receive the information reasonably necessary to participate meaningfully in the AGM, subject to confidentiality obligations and applicable legal restrictions.

12.1.5 The AGM shall be conducted transparently and in a manner that promotes accountability, democratic participation, and the protection of members' rights.

12.2 Special General Meeting

12.2.1 A Special General Meeting (SGM) may be convened whenever a matter requiring a decision of the members cannot reasonably be deferred until the next AGM.

12.2.2 An SGM may be convened by:

a) The Board, acting through a duly adopted resolution.

b) The President, acting on behalf of the Board and in accordance with the authority conferred by this Constitution.

c) Members entitled to requisition a meeting under applicable legislation or this Constitution.

d) Any other person or body expressly authorised to convene a general meeting under this Constitution or applicable law.

12.2.3 A requisition for an SGM shall be submitted in writing to Gotabgaa Australia Limited Secretary and shall specify the purpose of the meeting, the proposed resolutions, and the names and signatures or other valid authentication of the requisitioning members.

12.2.4 Upon receiving a valid requisition, the Board shall take the steps required to convene the meeting within the applicable statutory or constitutional period.

12.2.5 Where the Board fails to convene a properly requisitioned meeting within the prescribed period, the requisitioning members may exercise any rights available to them under applicable law and this Constitution to convene the meeting themselves.

12.2.6 The business of an SGM shall be limited to the matters specified in the notice of meeting and any incidental procedural matters necessary to conduct that business lawfully.

12.2.7 No substantive matter outside the stated purpose of an SGM shall be determined unless permitted by applicable law and the members have received adequate notice of the matter.

12.3 Notice of Meetings

12.3.1 Notice of every AGM and SGM shall be issued by Gotabgaa Australia Limited Secretary or another person duly authorised to do so.

12.3.2 Unless a longer period is required by law or this Constitution, members shall receive at least twenty-one (21) days' notice of a general meeting. Any statutory requirement for a longer notice period shall prevail.

12.3.3 The notice shall be delivered to each member entitled to receive it using the member's registered postal address, email address, electronic membership account, or another communication method permitted by law and approved by Gotabgaa Australia Limited.

12.3.4 The notice shall specify:

a) The date and time of the meeting.

b) The physical venue or electronic meeting arrangements, including any access instructions.

c) Whether the meeting will be held in person, electronically, or through a combination of physical and electronic participation.

d) The general nature of the business to be considered.

e) The full text or a sufficiently clear description of each proposed resolution, including whether it is proposed as an ordinary or special resolution.

f) Any applicable arrangements for voting, appointing proxies, submitting questions, or lodging motions.

g) The procedures and deadlines for submitting nominations, motions, proxy appointments, or other documents required for the meeting.

h) Any reports, explanatory statements, or supporting documents that members are entitled or required to receive.

12.3.5 Where a special resolution is proposed, the notice shall identify it as a special resolution and comply with the applicable statutory requirements concerning the wording and purpose of the resolution.

12.3.6 Accidental omission to give notice to a member, or a member's failure to receive a properly dispatched notice, shall be dealt with in accordance with applicable law. No meeting or

resolution shall be invalidated merely by an omission unless the omission has the legal effect of invalidating the meeting or resolution.

12.3.7 Gotabgaa Australia Limited Secretary shall maintain evidence of the issue of meeting notices and any accompanying documents.

12.4 Quorum

12.4.1 A quorum shall consist of the minimum number of eligible voting members required to be present for a general meeting to conduct substantive business lawfully.

12.4.2 Subject to any mandatory statutory requirement, the quorum shall be:

a) Five (5) voting members; or

b) Ten per cent (10%) of the total members entitled to vote,

whichever is lower, provided that the quorum shall not be fewer than two (2) eligible voting members.

12.4.3 For the purposes of determining a quorum, eligible members attending in person, through permitted electronic means, or by a validly appointed proxy shall be counted in accordance with this Constitution and applicable law. No person shall be counted more than once in respect of the same meeting.

12.4.4 The quorum must be present when the meeting commences substantive business and maintained whenever a resolution is considered, to the extent required by applicable law.

12.4.5 If a quorum is not present within thirty (30) minutes after the scheduled commencement time, the meeting shall be adjourned in accordance with Clause 12.10.

12.4.6 If the meeting was convened upon the requisition of members, the meeting shall be dissolved rather than adjourned where required by applicable law or where the relevant requisitioning members are not present in the circumstances prescribed by this Constitution.

12.4.7 No substantive resolution shall be passed, and no substantive business shall be transacted, in the absence of a quorum, except for procedural decisions necessary to adjourn the meeting or take other steps permitted by law.

12.4.8 If a quorum ceases to exist during a meeting, the Chairperson shall suspend substantive business until a quorum is restored or the meeting is adjourned.

12.5 Chairing of Meetings

12.5.1 The President shall ordinarily preside over general meetings of Gotabgaa Australia Limited, provided that the President is present, willing, and legally eligible to act.

12.5.2 If the President is absent, unwilling, or unable to preside, the Vice President or Deputy President shall chair the meeting, subject to the provisions of this Constitution.

12.5.3 If neither the President nor the Vice President or Deputy President is available, the eligible voting members present shall elect a Chairperson from among those entitled to participate in the meeting.

12.5.4 The Chairperson shall:

a) Ensure that the meeting is conducted fairly, impartially, and in accordance with this Constitution and applicable law.

b) Confirm the presence of a quorum before substantive business begins.

c) Determine the order of business and facilitate orderly discussion.

d) Provide members with reasonable opportunities to speak, ask questions, raise relevant concerns, and respond to matters under consideration.

e) Ensure that proposed resolutions are clearly stated before voting takes place.

f) Determine the appropriate voting procedure, subject to any valid demand for a poll and the requirements of applicable law.

g) Manage disruptions and maintain respectful conduct without improperly restricting members' lawful participation rights.

h) Announce the outcome of each resolution and ensure that the result is recorded in the minutes.

12.5.5 The Chairperson shall not exercise a casting vote unless expressly authorised by this Constitution and permitted by applicable law.

12.5.6 Where the Chairperson has a personal interest in a matter being considered, the interest shall be disclosed and the Chairperson shall comply with applicable conflict-of-interest requirements.

12.5.7 The Chairperson may invite a director, national office bearer, professional adviser, auditor, or representative of the Council of Elders and Advisers to provide information or advice relevant to the business of the meeting.

12.5.8 Any invited person who is not entitled to vote as a member shall not participate in voting unless separately authorised by this Constitution and applicable law.

12.6 Voting

12.6.1 Subject to any lawful class rights or specific voting arrangements contained in this Constitution, each eligible voting member shall have one (1) vote.

12.6.2 Voting rights shall be exercised only by members whose membership status entitles them to vote under this Constitution and who satisfy any applicable voting eligibility requirements.

12.6.3 Voting may be conducted by:

a) A show of hands.

b) A poll conducted by a method approved by the Chairperson.

c) A secure electronic voting system, where permitted by law and approved for the meeting.

d) A valid proxy vote, where proxy voting is permitted under Clause 12.7.

12.6.4 The Chairperson may direct that a poll be conducted where the nature or significance of a resolution warrants a recorded vote. A poll shall also be conducted where validly demanded under applicable law or this Constitution.

12.6.5 Each member's vote shall be counted in accordance with the voting method adopted for the resolution and the member's lawful voting entitlement.

12.6.6 A member who has an actual, potential, or perceived conflict of interest shall disclose the conflict and comply with the applicable conflict-of-interest provisions. Any restriction on the member's right to vote shall be imposed only where required or permitted by law or this Constitution.

12.6.7 Voting shall be conducted fairly, securely, and transparently, with reasonable measures to prevent duplicate voting, unauthorised participation, and interference with the voting process.

12.6.8 The Chairperson shall announce the result of each vote, including whether the resolution has been carried, defeated, or otherwise disposed of.

12.6.9 In the event of a tie, the resolution shall be deemed not carried unless this Constitution expressly provides for a casting vote and its exercise is lawful.

12.6.10 A member shall not be deprived of voting rights except in accordance with this Constitution and applicable law.

12.7 Proxies

12.7.1 A member entitled to attend and vote at a general meeting may appoint a proxy to exercise that member's rights where proxy voting is permitted under this Constitution and applicable law.

12.7.2 A proxy need not be a member of **Gotabgaa Australia Limited** unless otherwise required by this Constitution or applicable law.

12.7.3 The appointment of a proxy shall be made in writing or through an approved electronic process and shall identify:

a) The appointing member.

b) The appointed proxy.

c) The meeting for which the appointment is made.

d) Any lawful directions or limitations on the proxy's authority.

e) The signature, electronic authentication, or other evidence of authorisation required by Gotabgaa Australia Limited.

12.7.4 A proxy appointment shall be received by Gotabgaa Australia Limited within the period specified in the meeting notice, provided that the deadline and appointment procedure comply with applicable law.

12.7.5 A proxy shall exercise the rights conferred by the appointment in accordance with the member's lawful instructions and the terms of the appointment.

12.7.6 Unless expressly permitted by applicable law and this Constitution, a person shall not exercise more than one proxy vote in addition to any vote the person may exercise in their own capacity as a member.

12.7.7 A proxy appointment may be revoked by the appointing member in accordance with applicable law and the procedures established by Gotabgaa Australia Limited.

12.7.8 **Gotabgaa Australia Limited** Secretary shall maintain records of proxy appointments, revocations, and votes cast through proxies.

12.7.9 Proxy arrangements shall not be used to undermine the equal voting rights of members, manipulate the outcome of a meeting, or circumvent any lawful membership eligibility requirements.

12.7.10 Where applicable law prohibits or restricts proxy voting for Gotabgaa Australia Limited 's registration category, the statutory requirements shall prevail over this Clause.

12.8 Resolutions

12.8.1 Decisions of the members at a general meeting shall be made through resolutions proposed, considered, and determined in accordance with this Constitution and applicable law.

12.8.2 An ordinary resolution shall be passed by a simple majority of the valid votes cast by eligible members entitled to vote on the resolution, unless a different threshold is required by law or this Constitution.

12.8.3 A special resolution shall be passed only where the required statutory threshold and notice requirements have been satisfied. Where the Corporations Act 2001 (Cth) applies, the ordinary statutory threshold for a special resolution is at least seventy-five per cent (75%) of the votes cast by members entitled to vote on the resolution.

12.8.4 Matters requiring a special resolution shall include, where applicable:

a) Amendments to this Constitution.

b) Changes to Gotabgaa Australia Limited 's name.

c) Changes to Gotabgaa Australia Limited ’s legal structure or fundamental objectives where a special resolution is required by law.

d) Voluntary winding up or other fundamental corporate decisions where a special resolution is required by law.

e) Any other matter expressly designated as requiring a special resolution by this Constitution or applicable legislation.

12.8.5 A resolution shall not be treated as validly passed unless the meeting has been properly convened, the required quorum is present, the resolution has been clearly put to the vote, and the applicable voting threshold has been met.

12.8.6 The Chairperson shall declare the result of each resolution. Where a poll is conducted, the result shall be determined from the valid votes recorded.

12.8.7 Members may propose resolutions in accordance with the procedures and notice requirements established by applicable law and this Constitution.

12.8.8 A resolution concerning a matter outside the authority of the members, or inconsistent with applicable law, shall not authorise an unlawful act or override a mandatory statutory obligation.

12.8.9 Written resolutions or resolutions passed without a meeting may be used only where expressly permitted by applicable law and Gotabgaa Australia Limited ’s legal structure. They shall not replace a meeting where the law requires a meeting to be held.

12.8.10 All resolutions shall be recorded in Gotabgaa Australia Limited ’s official records, identifying the resolution, the date of the decision, the voting outcome, and any other particulars required by law.

12.9 Minutes

12.9.1 Gotabgaa Australia Limited Secretary shall ensure that accurate and complete minutes are prepared for every AGM, SGM, and other general meeting of Gotabgaa Australia Limited.

12.9.2 The minutes shall record:

a) The name and type of meeting.

b) The date, time, and place of the meeting, including the electronic platform where applicable.

c) The name of the Chairperson.

d) The names of members attending, or an attendance register identifying those present, together with details of valid proxies where required.

e) Confirmation that the meeting notice was issued and that a quorum was present.

f) The agenda and a summary of substantive discussions.

g) The text or substance of each resolution considered.

h) The voting method and outcome of each resolution, including poll results where applicable.

i) Any formal declaration of the passing or defeat of a resolution.

j) Any declaration of a material conflict of interest relevant to the proceedings.

k) Any adjournment, suspension, or procedural decision made during the meeting.

l) Any other information required to demonstrate compliance with this Constitution and applicable law.

12.9.3 The minutes shall be submitted to the Chairperson for review and confirmation and shall be signed or authenticated in accordance with applicable law and Gotabgaa Australia Limited 's approved procedures.

12.9.4 Minutes shall be retained securely as part of Gotabgaa Australia Limited 's official records for the period required by law.

12.9.5 Members shall be permitted to inspect minutes and obtain copies to the extent provided by applicable law and this Constitution, subject to lawful restrictions protecting confidential, personal, or legally privileged information.

12.9.6 **Gotabgaa Australia Limited** Secretary shall ensure that minutes and records of resolutions are made available to authorised persons and regulatory authorities where required by law.

12.9.7 The approved minutes shall constitute the official record of the proceedings, subject to correction through an appropriate process where a material error or omission is identified.

12.10 Adjournment of the Meeting

12.10.1 A general meeting may be adjourned by the Chairperson where:

a) A quorum is not present within the period prescribed by this Constitution.

b) A quorum ceases to exist during the meeting.

c) An emergency, technical failure, safety concern, or other material disruption prevents the meeting from continuing fairly or effectively.

d) The members present approve an adjournment in accordance with the applicable voting procedure.

e) The adjournment is otherwise required or permitted by applicable law.

12.10.2 Before adjourning a meeting, the Chairperson shall, where practicable, explain the reason for the adjournment and announce the proposed date, time, and place or electronic arrangements for the resumed meeting.

12.10.3 Where the resumed meeting arrangements cannot be determined at the time of adjournment, **Gotabgaa Australia Limited** Secretary shall notify members of the new arrangements in accordance with applicable law and this Constitution.

12.10.4 **Gotabgaa Australia Limited** shall issue a fresh notice of the resumed meeting where required by law or where the period of adjournment or the nature of the business makes a further notice necessary.

12.10.5 Unless otherwise required by law, only business left unfinished at the original meeting shall be considered at the resumed meeting. New substantive business may be considered only where lawful notice has been given.

12.10.6 An adjourned meeting shall be conducted in accordance with the quorum, chairing, voting, and resolution requirements of this Article.

12.10.7 The adjournment and the reasons for it shall be recorded in the minutes of the original meeting and, where appropriate, in the minutes of the resumed meeting.

12.10.8 No adjournment shall be used to improperly prevent members from exercising their lawful rights, suppress a valid resolution, or avoid a statutory obligation.

ARTICLE 13 — BOARD AND COMMITTEE MEETINGS

13.1 Board Meetings

a) The Board shall meet as often as necessary to discharge its duties effectively and, where practicable, at least once every three months.
b) Meetings may be conducted in person or by telephone, videoconference or other technology that enables participants to communicate adequately with one another.
c) Directors shall act in good faith and in the best interests of **Gotabgaa Australia Limited**.

13.2 Special Board Meetings

a) The President or any two Directors may convene a special Board meeting to address urgent or significant matters requiring Board consideration.
b) The meeting shall be limited to the business specified in the notice unless all Directors present agree otherwise and applicable law permits it.

13.3 Notice

a) Reasonable notice of each Board or committee meeting shall be given to every person entitled to attend, stating the date, time, location or electronic access details and proposed agenda.
b) For ordinary meetings, at least seven days' notice should be given where practicable.
c) For urgent meetings, shorter notice may be given where reasonably necessary, provided that all Directors are given a fair opportunity to participate and applicable legal requirements are met.

13.4 Quorum

a) The quorum for a Board meeting shall be a majority of the Directors then in office, unless a different lawful quorum is prescribed by this Constitution.
b) No business shall be decided unless a quorum is present.
c) If a quorum is not maintained, the meeting shall be adjourned or reconvened in accordance with procedures determined by the Board and consistent with this Constitution and applicable law.
d) A Director who is excluded from voting on a matter because of a conflict of interest shall not be counted towards the quorum for that matter where required by law or this Constitution.

13.5 Voting

a) Each Director entitled to vote shall have one vote.
b) A resolution shall be passed by a simple majority of votes cast by Directors entitled to vote, unless this Constitution or applicable law requires a higher threshold.
c) If votes are equal, the motion shall be defeated unless a casting vote is expressly authorised by this Constitution and permitted by law.
d) Decisions and dissenting views shall be recorded in the minutes where appropriate.

13.6 Conflict of Interest

a) A Director or committee member who has an actual, potential or perceived conflict of interest in a matter shall disclose the nature and extent of that interest as soon as reasonably practicable.
b) The disclosure shall be recorded in the minutes and, where appropriate, Gotabgaa Australia Limited 's conflict-of-interest register.
c) The person concerned shall not participate in deliberations or vote on the matter unless permitted under this Constitution and applicable law.
d) The remaining eligible Directors shall determine how the conflict is managed, ensuring that Gotabgaa Australia Limited 's interests and statutory obligations take priority.

13.7 Written Resolutions

a) A resolution in writing may be passed by the Board or a committee were permitted by the *Corporations Act 2001 (Cth)* and this Constitution.
b) The resolution shall be circulated to all Directors or committee members entitled to vote and shall be adopted only when the approval threshold required by law and this Constitution has been met.
c) Written resolutions, including electronic approvals, shall be retained with Gotabgaa Australia Limited 's official records.

13.8 Minutes

a) The Secretary, or another person appointed for that purpose, shall ensure that accurate minutes are prepared and maintained for every Board and committee meeting.
b) The minutes shall record the date, attendees, apologies, quorum, matters considered, resolutions passed, voting outcomes, declared conflicts of interest and actions assigned.
c) Minutes shall be submitted for confirmation at a subsequent meeting and securely retained as part of Gotabgaa Australia Limited 's corporate records.

13.9 Conflict Resolution

a) Any disagreement arising during a Board or committee meeting shall first be addressed through respectful discussion and good-faith efforts to reach consensus.
b) Where consensus cannot be achieved, the matter shall be determined by a vote in accordance with clause 13.5, provided that the decision is within the authority of the relevant body.
c) A Director or committee member with a conflict of interest shall not determine a dispute concerning that conflict.
d) Where a dispute involves the President, a Director, a committee chairperson or another person responsible for managing the dispute, the matter shall be referred to an impartial person or independent mediator who has no material interest in the outcome.
e) Disputes that remain unresolved shall be managed in accordance with Article 18 of this Constitution.
f) Nothing in this clause prevents Gotabgaa Australia Limited from taking urgent protective action or complying with legal, regulatory or safeguarding obligations.

ARTICLE 14 — FINANCE, PROPERTY AND INVESTMENTS

14.1 Financial Year

14.1.1 The financial year of Gotabgaa Australia Limited shall commence on 1st July and end on 30 June of the following year, unless the Board of Directors determines another financial year in accordance with applicable Australian law.

14.1.2 Gotabgaa Australia Limited shall maintain its financial affairs in accordance with this Constitution, its approved financial policies and all applicable laws and regulatory requirements.

14.2 Sources of Funds

14.2.1 The funds of Gotabgaa Australia Limited may be derived from lawful sources consistent with its objectives, including:

a. A one-off membership joining fee of AUD $50 per member.

b. An annual maintenance fee of AUD $20 per member.

c. Donations, gifts and voluntary contributions.

d. Grants from government agencies, foundations and other lawful funding bodies.

e. Sponsorships and partnerships.

f. Fundraising activities.

g. Merchandise sales and other lawful activities approved by the Board.

h. Any other lawful source consistent with Gotabgaa Australia Limited 's objectives and not-for-profit status.

14.2.2 The Board may recommend changes to membership fees, subject to approval by the members at a General Meeting where required by this Constitution.

14.2.3 All income received by Gotabgaa Australia Limited shall be properly recorded, receipted where appropriate, deposited into an authorised Company bank account and applied towards Gotabgaa Australia Limited 's objectives.

14.2.4 Gotabgaa Australia Limited shall not accept funds subject to conditions that are unlawful, inconsistent with its objectives or contrary to its not-for-profit obligations.

14.3 Bank Accounts

14.3.1 Gotabgaa Australia Limited shall maintain one or more bank accounts in its registered legal name with an authorised financial institution operating in Australia.

14.3.2 Company funds shall not be held in the personal bank accounts of members, Directors, officers, employees or volunteers.

14.3.3 Access to online banking, payment platforms and other financial facilities shall be restricted to persons authorised by the Board.

14.3.4 The Board shall ensure that appropriate banking controls, access restrictions and transaction monitoring arrangements are maintained.

14.3.5 Bank accounts shall be reconciled monthly, and the reconciliation reports shall be made available to the Treasurer and the Board.

14.4 Financial Controls

14.4.1 **Gotabgaa Australia Limited** shall maintain effective financial controls to promote transparency, accountability, integrity and the responsible stewardship of its funds.

14.4.2 At least two authorised officers shall approve bank transfers, major purchases, contracts and financial commitments, subject to the approved spending limits and any applicable legal requirements.

14.4.3 The Treasurer shall oversee routine financial administration, maintain accurate records and report on Gotabgaa Australia Limited 's financial position to the Board.

14.4.4 The Board shall ensure that significant purchases are supported by appropriate quotations, conflicts of interest are disclosed, contracts are properly authorised and procurement decisions are documented.

14.4.5 No person shall approve a payment or financial transaction in circumstances where that person has an undisclosed personal interest in the transaction.

14.4.6 **Gotabgaa Australia Limited** shall maintain a conflict-of-interest register covering relevant personal, family and business interests of Directors and officers.

14.4.7 A person with a conflict of interest shall disclose that interest and shall not participate in the relevant discussion or decision, except to the extent permitted by applicable law and Gotabgaa Australia Limited 's conflict-of-interest policy.

14.5 Authorised Signatories

14.5.1 The Board shall appoint at least two authorised signatories for Gotabgaa Australia Limited 's bank accounts and financial instruments.

14.5.2 Authorised signatories may include the Treasurer, Chairperson, Secretary or other suitable officers appointed by resolution of the Board.

14.5.3 Unless otherwise resolved by the Board, dual authorisation shall apply to bank transfers, major purchases, contracts and commitments in accordance with Gotabgaa Australia Limited 's financial controls.

14.5.4 No single officer shall exercise unrestricted control over Gotabgaa Australia Limited 's funds.

14.5.5 The Board shall promptly notify the relevant financial institution when an authorised signatory is appointed, resigns, is removed from office or otherwise ceases to be authorised.

14.6 Budget

14.6.1 The Treasurer, in consultation with the Chairperson and other relevant officers, shall prepare an annual budget for consideration and approval by the Board before the commencement of each financial year.

14.6.2 The annual budget shall, as applicable, provide for:

a. Administration and operational costs.

b. Membership services and communications.

c. Website, telephone, digital platforms and technology subscriptions.

d. National events, programs and community activities.

e. Training and leadership development.

f. Legal, accounting, insurance and regulatory compliance costs.

g. Approved projects and grant-funded activities.

h. Asset maintenance and replacement.

i. Appropriate operating reserves.

14.6.3 The Board shall review the budget at least quarterly by comparing actual income and expenditure against the approved budget.

14.6.4 Material departures from the approved budget shall require the approval of the Board, or of the members where required by this Constitution.

14.6.5 The annual budget and significant financial changes shall be reported to members in accordance with Gotabgaa Australia Limited 's reporting obligations and internal accountability policies.

14.7 Expenditure

14.7.1 All expenditure shall be lawful, reasonable, properly documented and incurred in furtherance of Gotabgaa Australia Limited 's objectives .

14.7.2 The following internal spending authorisation limits shall apply, expressed in Australian dollars:

Amount of Expenditure	Required Approval
Up to and including AUD $500	Treasurer
Above AUD $500 and up to AUD$2000	Treasurer and Chairperson

Above AUD$2000 and up to $10,000	Committee Board Resolution
Above AUD$10,000	Committee Board Resolution

14.7.3 Where an expenditure falls within more than one approval requirement, the higher approval requirement shall apply. The limits shall not be avoided by splitting a purchase, contract or commitment into smaller transactions.

14.7.4 The Board shall ensure that the required approvals are documented before Gotabgaa Australia Limited enters into a material financial commitment.

14.7.5 Every payment shall be supported by an invoice, receipt, contract, reimbursement claim or other appropriate evidence.

14.7.6 Emergency expenditure necessary to protect Gotabgaa Australia Limited 's people, property or operations may be authorised under an emergency procedure approved by the Board, provided that the expenditure is promptly reported and ratified where required.

14.7.7 No expenditure approval under this Article shall authorise an act prohibited by law or another provision of this Constitution.

14.8 Financial Records

14.8.1 Gotabgaa Australia Limited shall maintain complete, accurate and up-to-date financial records sufficient to explain its transactions and financial position.

14.8.2 Financial records shall include, as applicable:

a. Income and expenditure records.

b. Bank statements and reconciliations.

c. Receipts, invoices and payment records.

d. Membership fee records.

e. Grant agreements, funding conditions and acquittal reports.

f. Budgets and financial performance reports.

g. Asset and investment registers.

h. Contracts, procurement records and approval resolutions.

i. Records of related-party transactions and declared conflicts of interest.

14.8.3 The Treasurer shall prepare monthly reports covering income and expenditure, bank reconciliations and current account balances.

14.8.4 Quarterly reports shall review financial performance, budget variances and the adequacy of cash reserves.

14.8.5 Annual financial statements and any required directors' reports shall be prepared in accordance with applicable law.

14.8.6 Financial records shall be retained for the period required by applicable legislation and made available to authorised reviewers, auditors, regulators and members to the extent permitted by law.

14.8.7 Access to confidential financial information shall be restricted to persons with a legitimate organisational or legal need.

14.9 Audit and Financial Review

14.9.1 Gotabgaa Australia Limited shall arrange an independent financial review or audit annually where required by applicable law, Gotabgaa Australia Limited 's registration status, this Constitution, a funding agreement or a resolution of the members.

14.9.2 Where an audit is not legally required, the Board shall arrange an appropriate independent financial review consistent with Gotabgaa Australia Limited 's size, activities and financial risk.

14.9.3 A person conducting an independent review shall be sufficiently independent of Gotabgaa Australia Limited 's day-to-day financial management.

14.9.4 The annual financial statements, together with the auditor's or reviewer's report where applicable, shall be presented to the members at the Annual General Meeting or otherwise in accordance with applicable law.

14.9.5 The Board shall consider any recommendations arising from an audit or financial review and ensure that appropriate corrective measures are implemented.

14.9.6 Gotabgaa Australia Limited shall comply with the applicable financial reporting, audit and lodgement requirements under the Corporations Act 2001 (Cth) and, where applicable, the Australian Charities and Not-for-profits Commission Act 2012 (Cth).

14.10 Property

14.10.1 All property acquired, donated or otherwise lawfully obtained by Gotabgaa Australia Limited shall be held in Gotabgaa Australia Limited 's name or on its behalf in accordance with applicable law.

14.10.2 Gotabgaa Australia Limited shall maintain an asset register recording, where applicable:

a. The description of each asset.

b. The date of acquisition.

c. The purchase cost or reasonable recorded value.

d. The asset's location.

e. The responsible custodian.

f. The condition and maintenance requirements.

g. Details of any disposal, transfer or loss.

14.10.3 The Board shall ensure that Company property is properly maintained, insured where appropriate, safeguarded against loss and used only for authorised purposes.

14.10.4 The acquisition, sale, transfer, lease or disposal of significant property shall require Board approval and, where applicable, approval of the members.

14.10.5 Company property shall not be sold, transferred, pledged or otherwise dealt with for the private benefit of a member, Director or officer except where a transaction is expressly permitted under this Constitution and applicable law.

14.11 Investment

14.11.1 Gotabgaa Australia Limited may invest surplus funds where the investment is lawful, prudent, consistent with its objectives and permitted by this Constitution.

14.11.2 Before making an investment, the Board shall consider:

a. Gotabgaa Australia Limited 's current and anticipated financial obligations.

b. The liquidity required for ordinary operations and approved projects.

c. The preservation of capital and the risk of financial loss.

d. The expected return and investment costs.

e. The suitability of the investment for a not-for-profit organisation.

f. Any restrictions imposed by donors, grant agreements or applicable law.

14.11.3 Gotabgaa Australia Limited should aim to maintain reserves sufficient to cover approximately six to twelve months of ordinary operating expenses, subject to its financial circumstances and approved reserve policy.

14.11.4 Investments shall be made only with proper Board authorisation and shall be recorded in the **Gotabgaa Australia Limited** financial records and investment register.

14.11.5 **Gotabgaa Australia Limited** funds shall not be used for speculative investments, personal investments of officers or transactions presenting an unmanaged conflict of interest.

14.11.6 The Board shall periodically review the performance, security and suitability of Gotabgaa Australia Limited 's investments.

14.12 Grants

14.12.1 **Gotabgaa Australia Limited** may apply for, receive and administer grants consistent with its objectives and legal obligations.

14.12.2 The Board shall approve significant grant applications and ensure that Gotabgaa Australia Limited has the capacity to meet the obligations associated with the proposed funding.

14.12.3 Grant funds shall be used only for the purposes specified in the relevant grant agreement or funding conditions.

14.12.4 **Gotabgaa Australia Limited** shall maintain separate accounting records or other appropriate tracking arrangements for restricted grant funds.

14.12.5 The responsible officer shall ensure that grant acquittals, progress reports, financial reports and other required documents are submitted within the applicable deadlines.

14.12.6 Any unspent, misapplied or repayable grant funds shall be dealt with in accordance with the relevant grant agreement and applicable law.

14.12.7 No grant shall be accepted where its conditions require Gotabgaa Australia Limited to act contrary to its objectives , this Constitution or applicable law.

14.13 Use of Company Assets

14.13.1 **Gotabgaa Australia Limited** funds, property, information, equipment, facilities and other resources shall be used solely for authorised organisational purposes and the furtherance of its objectives .

14.13.2 Directors, officers, employees, members and volunteers shall exercise reasonable care in the use, custody and protection of Company assets.

14.13.3 Personal use of Company assets shall not be permitted unless it is expressly authorised under a Board-approved policy, is reasonable and incidental to organisational activities, and is consistent with Gotabgaa Australia Limited 's objectives and applicable law.

14.13.4 No person shall misuse, misappropriate, waste or knowingly permit the unauthorised use of Company assets.

14.13.5 Any suspected loss, theft, fraud, misuse or unauthorised disposal of Company assets shall be reported promptly to the Board for appropriate investigation and action.

14.13.6 The Board shall ensure that appropriate measures are taken to recover misappropriated assets, address control failures and protect Gotabgaa Australia Limited 's resources.

ARTICLE 15 — NOT-FOR-PROFIT AND ASSET PROTECTION

15.1 Application of Income

15.1.1 The income, property and other resources of Gotabgaa Australia Limited shall be applied solely towards promoting and achieving Gotabgaa Australia Limited 's objectives .

15.1.2 **Gotabgaa Australia Limited** may generate a surplus from membership fees, donations, grants, fundraising, sponsorships, merchandise sales and other lawful activities. Any such surplus shall be retained or applied towards Gotabgaa Australia Limited 's objectives .

15.1.3 **Gotabgaa Australia Limited** may establish reserves, fund approved projects, acquire assets, support programs and meet reasonable operational expenses where these activities further its objectives .

15.1.4 The Board shall ensure that financial decisions are made in the best interests of Gotabgaa Australia Limited and are consistent with its not-for-profit character.

15.1.5 No provision of this Constitution shall be interpreted as authorising the distribution of income or assets to members or other persons for their private benefit, except for payments expressly permitted under this Article and applicable law.

15.2 Prohibition on Distribution

15.2.1 **Gotabgaa Australia Limited** is established and shall operate on a not-for-profit basis.

15.2.2 No portion of Gotabgaa Australia Limited 's income, surplus or assets shall be distributed directly or indirectly to a member solely because that person is a member.

15.2.3 **Gotabgaa Australia Limited** shall not pay dividends or make distributions of profits to members in their capacity as members.

15.2.4 Nothing in this Article shall prevent Gotabgaa Australia Limited from making a payment expressly permitted under this Constitution, including reasonable payments for goods or services, reimbursement of properly incurred expenses, or assistance provided in furtherance of Gotabgaa Australia Limited 's objectives .

15.2.5 All payments permitted under this Article shall be properly authorised, reasonable, adequately documented and consistent with applicable law.

15.2.6 This Article shall prevail over any inconsistent provision of this Constitution to the extent permitted by law.

15.3 Payments to Members

15.3.1 A member shall not be entitled to receive any dividend, profit distribution or other financial benefit merely by virtue of membership.

15.3.2 Subject to this Constitution and applicable law, Gotabgaa Australia Limited may make payments to a member where the payment:

a. Represents reasonable consideration for goods or services supplied to Gotabgaa Australia Limited.

b. Reimburses expenses properly incurred on behalf of Gotabgaa Australia Limited.

c. Provides assistance or services to the member in furtherance of Gotabgaa Australia Limited 's objectives .

d. Is otherwise lawful and consistent with Gotabgaa Australia Limited 's not-for-profit status.

15.3.3 Any payment to a member shall be made on fair and reasonable terms and shall not constitute an improper private benefit.

15.3.4 A member who has a personal or financial interest in a proposed transaction shall disclose that interest before the transaction is considered.

15.3.5 Any approval of a payment to a member shall be recorded in Gotabgaa Australia Limited 's minutes and financial records, together with the nature of the payment and the basis on which it was considered reasonable.

15.3.6 Membership fees, donations or other contributions made to Gotabgaa Australia Limited shall not create any entitlement to repayment, profit sharing or ownership of Company assets, except where repayment is expressly authorised by law or the applicable terms of the contribution.

15.4 Payments to Directors

15.4.1 Directors shall ordinarily serve in a voluntary capacity unless remuneration is expressly permitted by this Constitution and applicable law.

15.4.2 A Director shall not receive remuneration merely for holding office as a Director unless such remuneration is expressly authorised under this Constitution and approved through the appropriate governance process.

15.4.3 Nothing in this Article shall prevent a Director from receiving reasonable remuneration for separate professional, employment or other services genuinely provided to Gotabgaa Australia Limited, provided that:

a. The payment is lawful and permitted by this Constitution.

b. The services are necessary or beneficial to Gotabgaa Australia Limited.

c. The amount is fair and reasonable and supported by appropriate evidence.

d. The Director's interest is fully disclosed.

e. The transaction is approved by the non-conflicted Directors or members, as appropriate and legally required.

f. The interested Director does not participate in the decision except to the extent permitted by law.

15.4.4 **Gotabgaa Australia Limited** shall maintain records of all payments made to Directors, including remuneration, service fees, allowances and other financial benefits.

15.4.5 No payment shall be made to a Director where it would constitute an unlawful distribution, breach of directors' duties or improper use of Company funds.

15.4.6 Where **Gotabgaa Australia Limited** is registered as a charity with the ACNC, any remuneration or other benefit provided to a director who is also a Responsible Person must comply with the applicable ACNC requirements and Gotabgaa Australia Limited 's governing document.

15.5 Reimbursement of Expenses

15.5.1 **Gotabgaa Australia Limited** may reimburse a director, officer, employee, member or volunteer for reasonable expenses properly incurred while carrying out authorised duties on behalf of Gotabgaa Australia Limited.

15.5.2 Reimbursable expenses may include:

a. Approved travel and transport costs.

b. Accommodation and meals reasonably required for authorised organisational activities.

c. Communication and administrative expenses.

d. Approved event, meeting and program expenses.

e. Other reasonable expenses incurred for Gotabgaa Australia Limited 's authorised activities.

15.5.3 A claim for reimbursement shall be supported by receipts, invoices or other appropriate evidence, together with a description of the purpose of the expenditure.

15.5.4 Reimbursement shall be limited to actual, reasonable and properly incurred expenses, except where an approved reimbursement policy lawfully provides for reasonable allowances or other documented arrangements.

15.5.5 A person shall not approve their own reimbursement claim. Claims submitted by a Director or the Treasurer shall be reviewed and approved by an appropriately authorised, non-conflicted officer.

15.5.6 Reimbursement shall not be used as a means of disguising remuneration, making an unauthorised distribution or providing an improper personal benefit.

15.6 Related-Party Transactions

15.6.1 For the purposes of this Article, a related-party transaction includes a transaction involving Gotabgaa Australia Limited and a Director, officer, member, employee, close family member, associated entity or other person whose relationship with a decision-maker may give rise to an actual, potential or perceived conflict of interest.

15.6.2 All Directors and officers shall disclose any personal, family, financial or business interest that may influence, or reasonably appear to influence, a decision involving Gotabgaa Australia Limited.

15.6.3 Disclosures shall be recorded in Gotabgaa Australia Limited 's conflict-of-interest register and updated whenever relevant circumstances change.

15.6.4 A person with a material conflict of interest shall not participate in the discussion, deliberation or voting on the relevant matter, except as permitted by applicable law and Gotabgaa Australia Limited 's approved conflict-of-interest policy.

15.6.5 A related-party transaction may proceed only where it is lawful, consistent with Gotabgaa Australia Limited 's objectives , demonstrably in Gotabgaa Australia Limited 's interests and properly authorised.

15.6.6 Before approving a material related-party transaction, the Board shall consider:

a. Whether the transaction is necessary or beneficial to Gotabgaa Australia Limited.

b. Whether the terms are fair and reasonable.

c. Whether comparable alternatives are available.

d. Whether the transaction could provide an improper private benefit.

e. Whether the transaction is permitted by this Constitution and applicable law.

15.6.7 The nature of the transaction, the disclosed interest, the approval process and the reasons for the decision shall be recorded in the minutes and financial records.

15.6.8 Gotabgaa Australia Limited shall comply with the related-party transaction and disclosure requirements applicable to its legal structure, including relevant provisions of the Corporations Act 2001 (Cth) and, where applicable, ACNC reporting obligations.

15.6.9 Any transaction that is prohibited by law or inconsistent with Gotabgaa Australia Limited 's not-for-profit obligations shall not be approved under this Article.

15.7 Protection of Organisational Assets

15.7.1 All assets and resources of **Gotabgaa Australia Limited** shall be held and managed for the benefit of Gotabgaa Australia Limited and the furtherance of its objectives .

15.7.2 No Director, officer, member, employee or volunteer shall acquire a personal ownership interest in **Gotabgaa Australia Limited** property merely by virtue of their position or participation in Gotabgaa Australia Limited.

15.7.3 **Gotabgaa Australia Limited** assets shall not be transferred, pledged, sold, lent or otherwise disposed of for the personal benefit of any individual except through a lawful, properly authorised transaction consistent with this Constitution.

15.7.4 The Board shall maintain appropriate safeguards for Gotabgaa Australia Limited 's financial resources, physical property, records, intellectual property, digital assets and confidential information.

15.7.5 Any person entrusted with **Gotabgaa Australia Limited** assets shall exercise reasonable care and shall comply with Gotabgaa Australia Limited 's financial, procurement, asset-management and information-security policies.

15.7.6 Suspected fraud, theft, misuse of funds, unauthorised transactions or other material breaches involving Company assets shall be reported promptly to the Board or an appropriate independent authority within **Gotabgaa Australia Limited**.

15.7.7 The Board shall investigate reported incidents fairly, take appropriate corrective action and, where necessary, refer suspected unlawful conduct to the relevant authorities.

15.7.8 A person responsible for the unauthorised use, misappropriation or loss of Company assets may be required to account for the assets or compensate Gotabgaa Australia Limited to the extent permitted by law.

15.7.9 Nothing in this Article shall exclude or limit any statutory duty, liability or remedy arising under Australian law.

15.7.10 The protection of **Gotabgaa Australia Limited** assets shall continue during any change of leadership, restructuring, suspension of activities or winding-up process, subject to applicable law and Gotabgaa Australia Limited 's winding-up provisions.

ARTICLE 16 — CONFLICT OF INTEREST

16.1 Disclosure

16.1.1 Every director, national office bearer, member of a committee, member of the Council of Elders and Advisers (Arap Tera), employee, and other person exercising delegated authority on behalf of the Australian Guarantee Company (hereinafter referred to as "Gotabgaa Australia Limited") shall act honestly, in good faith, and in the best interests of **Gotabgaa Australia Limited.**

16.1.2 A person to whom this Article applies shall disclose any actual, potential, or perceived conflict between their personal, professional, financial, family, cultural, political, or other interests and their duties to **Gotabgaa Australia Limited**.

16.1.3 A conflict of interest may arise where a person's private interests, relationships, or external responsibilities could improperly influence, or reasonably appear to influence, their judgement or decision-making on behalf of **Gotabgaa Australia Limited**.

16.1.4 Disclosure shall be made as soon as the person becomes aware of the conflict and, where practicable, before participating in any discussion, recommendation, negotiation, or decision concerning the relevant matter.

16.1.5 Disclosure shall be made in writing to **Gotabgaa Australia Limited** Secretary or, where Gotabgaa Australia Limited Secretary is concerned, to the President or another independent person authorised by the Board.

16.1.6 Where the President or a majority of the Board has a conflict concerning the matter, disclosure shall be made to the unconflicted directors and, where appropriate, to the members in accordance with applicable law.

16.1.7 Disclosure shall identify the nature and extent of the interest, the persons or entities involved, the relevant transaction or decision, and any other information reasonably necessary to assess the conflict.

16.1.8 A person's obligation to disclose a conflict shall not be discharged merely because the interest is known informally to other office bearers or members.

16.1.9 Failure to disclose a material conflict of interest may constitute a breach of this Constitution and may result in disciplinary action, subject to applicable law and procedural fairness.

16.2 Register of Interests

16.2.1 **Gotabgaa Australia Limited** Secretary shall maintain a confidential Register of Interests recording declared conflicts and other relevant interests of directors, national office bearers, committee members, and other persons designated by the Board.

16.2.2 The Register shall record, as applicable:

a) The name and position of the person declaring the interest.

b) The nature and extent of the interest or relationship.

c) The date on which the interest was disclosed.

d) The transaction, activity, or decision to which the interest relates.

e) The measures adopted to manage the conflict.

f) The date on which the conflict was reviewed, resolved, or otherwise ceased.

16.2.3 Each person required to disclose interests shall provide an initial declaration upon appointment and update that declaration whenever a material change occurs.

16.2.4 **Gotabgaa Australia Limited** Secretary shall ensure that the Register is reviewed periodically and that relevant entries are updated when new information becomes available.

16.2.5 Access to the Register shall be restricted to authorised persons who require the information for legitimate governance, compliance, audit, or investigation purposes, subject to applicable law.

16.2.6 The Board may establish procedures for the declaration of interests by members of the Arap Tera Council, employees, contractors, volunteers, and other representatives whose responsibilities may expose them to conflicts.

16.2.7 The Register shall be maintained securely and retained for the period required by applicable law and **Gotabgaa Australia Limited** records-management policy.

16.3 Participation in Decisions

16.3.1 A person who has disclosed a conflict of interest shall not improperly influence, participate in, or determine a matter to which that conflict relates.

16.3.2 Unless applicable law or a lawful constitutional provision permits otherwise, the conflicted person shall:

a) Declare the conflict before consideration of the matter.

b) Withdraw from deliberations concerning the matter when required.

c) Abstain from voting or otherwise participating in the decision.

d) Refrain from accessing confidential papers or information relating to the matter where access is unnecessary or inappropriate.

e) Avoid influencing another person to secure an outcome that would improperly benefit the conflicted person or a related party.

16.3.3 The unconflicted directors or other authorised decision-makers shall determine the appropriate management measures, taking into account the nature, seriousness, and circumstances of the conflict.

16.3.4 The withdrawal of a conflicted person shall be recorded in the minutes of the relevant meeting, together with the nature of the conflict, the management measures adopted, and the decision reached.

16.3.5 A conflicted person shall not be counted towards a quorum where applicable law or this Constitution requires their exclusion. If the exclusion prevents a lawful decision, the matter shall be referred to an appropriate unconflicted decision-making body or dealt with through another lawful procedure.

16.3.6 No provision of this Article shall authorise a director or other office holder to disregard a statutory duty or participate in a decision where their participation is prohibited by law.

16.4 Related-Party Transactions

16.4.1 Any proposed transaction, contract, procurement, appointment, financial arrangement, transfer of property, or other dealing between Gotabgaa Australia Limited and a related party shall be disclosed and assessed before approval.

16.4.2 A related party may include a director, national office bearer, senior officer, key management person, close family member, controlled entity, business associate, or other person or entity falling within the applicable legal definition.

16.4.3 Related-party transactions shall be undertaken only where they are lawful, properly authorised, demonstrably in Gotabgaa Australia Limited ’s interests, and consistent with its purposes and financial responsibilities.

16.4.4 Before approving a material related-party transaction, the unconflicted decision-makers shall, where appropriate:

a) Assess whether the transaction is necessary or beneficial to **Gotabgaa Australia Limited**.

b) Consider reasonable alternative suppliers, service providers, or arrangements.

c) Establish whether the proposed terms are fair and reasonable and represent appropriate value for money.

d) Evaluate the financial, operational, reputational, and legal risks.

e) Confirm that the transaction complies with Gotabgaa Australia Limited ’s financial delegations, procurement policy, and applicable law.

f) Document the reasons for approving or rejecting the transaction.

16.4.5 A person with a material interest in a proposed transaction shall not participate in its approval except where participation is expressly permitted by applicable law and Gotabgaa Australia Limited 's constitution.

16.4.6 No director, national office bearer, Council member, employee, or other representative shall use their position to secure an improper personal benefit, preferential treatment, or an unauthorised financial advantage for themselves or a related party.

16.4.7 Any remuneration, reimbursement, payment, benefit, or other financial arrangement involving a director or related party shall be subject to applicable law, **Gotabgaa Australia Limited** constitution, and any relevant charitable or not-for-profit restrictions.

16.4.8 Gotabgaa Australia Limited shall maintain adequate records of material related-party transactions, including approvals, supporting documents, contractual terms, conflict declarations, and relevant financial disclosures.

16.4.9 Where **Gotabgaa Australia Limited** is registered as a charity, related-party transactions shall also be managed and reported in accordance with applicable ACNC requirements.

16.5 Management of Conflicts

16.5.1 The Board shall establish, implement, and periodically review a Conflict-of-Interest Policy consistent with this Article and applicable law.

16.5.2 Conflict management measures may include:

a) Disclosure and recording of the relevant interest.

b) Recusal from discussion, deliberation, negotiation, or voting.

c) Restriction of access to confidential information.

d) independent review or approval by unconflicted decision-makers.

e) Competitive procurement or independent valuation.

f) Reassignment of responsibilities or decision-making authority.

g) Termination or restructuring of an arrangement where the conflict cannot otherwise be adequately managed.

16.5.3 Where a conflict involves the President, **Gotabgaa Australia Limited** Secretary, a director, or a member of the Arap Tera Council, the matter shall be referred to an appropriate unconflicted person or body for assessment and management.

16.5.4 Where a conflict cannot be managed adequately, **Gotabgaa Australia Limited** may require the person concerned to relinquish the conflicting responsibility, withdraw from the

relevant activity, or take other lawful steps necessary to protect **Gotabgaa Australia Limited** interests.

16.5.5 **Gotabgaa Australia Limited** shall not treat the existence of a conflict as automatic proof of misconduct. Each matter shall be assessed fairly, taking into account the relevant facts, applicable legal duties, and the adequacy of the disclosure and management measures.

16.5.6 A suspected failure to disclose or properly manage a conflict shall be investigated through a fair and impartial process, with the person concerned given a reasonable opportunity to respond.

16.5.7 Decisions concerning conflicts of interest shall be documented and retained in accordance with the **Gotabgaa Australia Limited** governance and records-management requirements.

16.5.8 The Board shall report material governance concerns arising from conflicts of interest to the members or relevant authorities where required by law.

ARTICLE 17 — ETHICS, CONDUCT, SAFEGUARDING AND COMPLAINTS

17.1 Code of Conduct

17.1.1 **Gotabgaa Australia Limited** shall establish and maintain a Code of Conduct governing the behaviour and responsibilities of directors, national office bearers, members of the Arap Tera Council, members, employees, contractors, volunteers, and other persons acting on behalf of Gotabgaa Australia Limited.

17.1.2 The Code of Conduct shall reflect **Gotabgaa Australia Limited** constitutional objectives, institutional values, cultural responsibilities, and commitment to lawful, ethical, inclusive, and accountable conduct.

17.1.3 Every person to whom the Code applies shall:

a) Act honestly, respectfully, diligently, and in good faith.

b) Respect this Constitution, the lawful decisions of **Gotabgaa Australia Limited**, and applicable Australian law.

c) Treat members, colleagues, beneficiaries, partners, and members of the public with dignity and fairness.

d) Protect **Gotabgaa Australia Limited** property, funds, confidential information, records, and reputation.

e) Disclose conflicts of interest and comply with the requirements of Article 16.

f) Refrain from fraud, corruption, bribery, intimidation, harassment, discrimination, bullying, exploitation, and other misconduct.

g) Respect the legitimate authority and responsibilities of the Board, national office bearers, members, and the Arap Tera Council.

h) Use the **Gotabgaa Australia Limited** resources only for authorised purposes.

i) Cooperate honestly with lawful audits, investigations, safeguarding procedures, and governance reviews.

j) Report suspected misconduct, abuse, unlawful activity, or serious breaches of this Constitution through appropriate reporting channels.

17.1.4 The Board shall ensure that the Code of Conduct is communicated to relevant persons and reviewed periodically.

17.1.5 Persons appointed to leadership positions may be required to acknowledge the Code of Conduct in writing as a condition of appointment or continued service, subject to applicable law.

17.1.6 The Code of Conduct shall be implemented consistently and shall not override statutory rights, lawful employment protections, or other obligations imposed by applicable law.

17.2 Ethical Standards

17.2.1 **Gotabgaa Australia Limited** shall conduct its affairs in accordance with the principles of integrity, accountability, transparency, fairness, respect, responsible stewardship, and service to its legitimate organisational purposes.

17.2.2 Directors, office bearers, employees, volunteers, and other representatives shall exercise their responsibilities for proper purposes and shall not misuse their positions for personal gain or to confer improper benefits on others.

17.2.3 **Gotabgaa Australia Limited** shall maintain appropriate financial controls, procurement procedures, authorisation limits, and recordkeeping practices to protect its assets and prevent fraud, corruption, and misuse of funds.

17.2.4 **Gotabgaa Australia Limited** shall not knowingly participate in unlawful conduct, fraudulent arrangements, bribery, corruption, or activities that materially undermine its constitutional purposes.

17.2.5 Gifts, hospitality, donations, sponsorships, and other benefits offered to representatives of **Gotabgaa Australia Limited** shall be handled in accordance with an approved policy designed to prevent improper influence and undisclosed personal benefits.

17.2.6 **Gotabgaa Australia Limited** shall protect personal information and confidential organisational information in accordance with applicable privacy, confidentiality, and records-management obligations.

17.2.7 Decisions concerning appointments, procurement, funding, partnerships, membership, and access to **Gotabgaa Australia Limited** services shall be made fairly and on relevant grounds, without improper favouritism or discrimination.

17.2.8 **Gotabgaa Australia Limited** shall promote a culture in which individuals can raise concerns in good faith without intimidation or fear of retaliation.

17.2.9 The Board shall oversee the implementation of ethical standards and shall take reasonable steps to ensure that policies and procedures remain appropriate to **Gotabgaa Australia Limited** activities and legal obligations.

17.3 Child Safety

17.3.1 Where **Gotabgaa Australia Limited** activities involve children or young people, Gotabgaa Australia Limited shall prioritise their safety, wellbeing, dignity, participation, and protection from abuse, neglect, exploitation, and other forms of harm.

17.3.2 **Gotabgaa Australia Limited** shall develop, implement, and periodically review a Child Safety and Protection Policy consistent with the National Principles for Child Safe Organisations and the applicable child protection and child-safe standards of the relevant Australian state or territory.

17.3.3 **Gotabgaa Australia Limited** shall take reasonable and lawful steps to:

a) Establish child-safe governance arrangements and clearly defined safeguarding responsibilities.

b) Ensure that children and young people are treated with respect and that their views are taken seriously in matters affecting them.

c) Conduct appropriate screening, background checks, and suitability assessments for employees, volunteers, contractors, and other persons working with children, including Working with Children Checks where legally required.

d) Provide appropriate child-safety training and guidance to persons undertaking child-related activities.

e) Establish safe physical and online environments and minimise opportunities for abuse, grooming, exploitation, or other harm.

f) Maintain appropriate supervision, professional boundaries, and procedures for contact with children.

g) Provide accessible, child-sensitive, and culturally appropriate ways for children and their families to raise concerns.

h) Respond promptly and appropriately to allegations, disclosures, suspicions, and incidents of child abuse or other harm.

17.3.4 Every person acting on behalf of Gotabgaa Australia Limited shall report suspected child abuse, neglect, exploitation, or other safeguarding concerns through the prescribed reporting channels and to the relevant authorities where required by law.

17.3.5 No person shall conceal, suppress, discourage, or improperly interfere with a child-safety report or investigation.

17.3.6 Gotabgaa Australia Limited shall take appropriate measures to protect children while concerns are assessed, including interim changes to duties, supervision arrangements, or access to children were reasonably necessary and lawful.

17.3.7 **Gotabgaa Australia Limited** shall ensure that safeguarding responses are child-centred, preserve confidentiality as far as practicable, and do not compromise mandatory reporting obligations or lawful investigations.

17.3.8 Cultural traditions, organisational reputation, personal relationships, or the status of an alleged offender shall not be used to excuse abuse, prevent reporting, or obstruct protective action.

17.3.9 The Board shall ensure that child-safety policies are reviewed regularly and that identified weaknesses are addressed.

17.4 Protection of Vulnerable Persons

17.4.1 **Gotabgaa Australia Limited** shall take reasonable steps to protect vulnerable persons who participate in, receive services from, work with, or otherwise engage with Gotabgaa Australia Limited from abuse, neglect, exploitation, discrimination, harassment, intimidation, and avoidable harm.

17.4.2 For the purposes of this Article, vulnerable persons may include children, older persons, persons with disability, persons experiencing social or economic disadvantage, persons affected by domestic or family violence, and persons whose circumstances may increase their exposure to harm or exploitation.

17.4.3 **Gotabgaa Australia Limited** shall promote safe, respectful, accessible, and culturally appropriate environments for vulnerable persons, having regard to their individual circumstances, autonomy, dignity, and rights.

17.4.4 **Gotabgaa Australia Limited** shall:

a) Establish appropriate safeguarding procedures for activities involving vulnerable persons.

b) Ensure that employees, volunteers, and representatives understand their responsibilities and professional boundaries.

c) Provide appropriate avenues for vulnerable persons to express concerns, make complaints, and seek assistance.

d) Take reasonable steps to prevent financial abuse, coercion, exploitation, and misuse of personal information.

e) Respond appropriately to disclosures or allegations of abuse, neglect, or other harm.

f) Refer concerns to appropriate professional services or statutory authorities where necessary and lawful.

g) Provide reasonable accessibility adjustments and communication support where required.

17.4.5 A person's age, disability, cultural background, language, financial circumstances, immigration status, or dependence on Gotabgaa Australia Limited shall not justify degrading treatment, exclusion, exploitation, or denial of appropriate safeguards.

17.4.6 **Gotabgaa Australia Limited** shall respect the right of vulnerable adults to make decisions about their own lives, subject to applicable law and any lawful arrangements concerning decision-making capacity, guardianship, or protection.

17.4.7 Where a safeguarding concern involves a director, national office bearer, member of the Arap Tera Council, or another person in authority, the matter shall be referred to an independent and appropriately authorised person or body.

17.4.8 Nothing in this Article shall prevent a person from contacting emergency services, police, a regulator, a safeguarding authority, or another appropriate external body where necessary or required by law.

17.5 Gender Equality and Inclusion

17.5.1 **Gotabgaa Australia Limited** shall promote gender equality, equal opportunity, inclusion, mutual respect, and the meaningful participation of eligible members in its governance and activities.

17.5.2 **Gotabgaa Australia Limited** shall not unlawfully discriminate on the basis of sex, gender, gender identity, sexual orientation, race, ethnicity, nationality, disability, age, religion, cultural background, or any other attribute protected by applicable law.

17.5.3 **Gotabgaa Australia Limited** shall promote fair access to membership, leadership opportunities, training, programmes, services, and participation in organisational activities, subject to its lawful eligibility criteria and constitutional purposes.

17.5.4 **Gotabgaa Australia Limited** shall take reasonable steps to prevent and address sexual harassment, gender-based harassment, bullying, victimisation, exploitation, and other discriminatory conduct.

17.5.5 Recruitment, nominations, appointments, promotions, and leadership selection shall be conducted fairly, transparently, and in accordance with this Constitution and applicable law.

17.5.6 The Board shall encourage appropriate representation and participation across gender, age groups, cultural backgrounds, and relevant community constituencies, consistent with Gotabgaa Australia Limited 's purposes and lawful governance requirements.

17.5.7 Reasonable adjustments and accessible communication arrangements shall be considered to support participation by persons with disability and others who require assistance to participate meaningfully.

17.5.8 Cultural identity and tradition shall be respected in Gotabgaa Australia Limited 's activities, provided that cultural considerations are not used to justify unlawful discrimination, abuse, harassment, or denial of legally protected rights.

17.5.9 **Gotabgaa Australia Limited** shall periodically assess its inclusion practices and address reasonable concerns about barriers to participation.

17.6 Complaints

17.6.1 **Gotabgaa Australia Limited** shall establish and maintain a fair, accessible, confidential, and impartial complaints-handling procedure for concerns relating to misconduct, governance, discrimination, harassment, safeguarding, financial irregularities, breaches of this Constitution, or other matters connected with Gotabgaa Australia Limited.

17.6.2 A complaint may be submitted by a member, employee, volunteer, contractor, programme participant, beneficiary, partner, or other person with a legitimate concern relating to **Gotabgaa Australia Limited**.

17.6.3 Complaints may be submitted in writing, electronically, verbally, or through another accessible method approved by Gotabgaa Australia Limited.

17.6.4 **Gotabgaa Australia Limited** shall provide reasonable assistance to persons who face language, disability, literacy, cultural, or other barriers to making a complaint.

17.6.5 Upon receiving a complaint, Gotabgaa Australia Limited shall, as appropriate:

a) Acknowledge receipt within a reasonable period.

b) Assess the nature, seriousness, urgency, and potential risks associated with the complaint.

c) Determine whether immediate protective measures or referral to an external authority is required.

d) Identify an impartial person to handle the complaint and any investigation.

e) Inform the parties of the applicable process, subject to confidentiality and legal restrictions.

f) Gather relevant information and provide affected persons with a reasonable opportunity to respond.

g) Reach a reasoned outcome based on the available evidence and applicable standards.

h) Communicate the outcome to the complainant and relevant parties to the extent permitted by law.

i) Record the outcome and implement any necessary corrective action.

17.6.6 A person shall not be responsible for investigating or determining a complaint in which they have a personal interest, are implicated, or cannot reasonably act impartially.

17.6.7 Where a complaint concerns the President, a director, Gotabgaa Australia Limited Secretary, or a member of the Arap Tera Council, it shall be referred to an appropriate independent decision-maker or external investigator where necessary.

17.6.8 Complaints involving suspected criminal conduct, child abuse, serious safeguarding risks, or other matters requiring statutory notification shall be referred to the relevant authorities where required by law. Internal procedures shall not replace mandatory reporting or interfere with an external investigation.

17.6.9 **Gotabgaa Australia Limited** may seek to resolve appropriate complaints through informal resolution, facilitated discussion, or mediation where the matter is suitable and participation is voluntary. Informal resolution shall not be used to suppress serious allegations or avoid legal obligations.

17.6.10 **Gotabgaa Australia Limited** shall maintain appropriate records of complaints, investigations, findings, decisions, and corrective measures, subject to applicable privacy and recordkeeping requirements.

17.6.11 A person dissatisfied with the handling or outcome of a complaint may request a review by an independent person or body where Gotabgaa Australia Limited 's complaints procedure provides for such review.

17.6.12 Nothing in this Article shall prevent a person from exercising a legal right to complain to a relevant regulator, tribunal, police service, court, or other competent authority.

17.7 Whistleblower Protection

17.7.1 **Gotabgaa Australia Limited** shall encourage the good-faith reporting of suspected fraud, corruption, serious misconduct, misuse of funds, significant governance failures, unlawful conduct, and other matters that may materially harm Gotabgaa Australia Limited or persons affected by its activities.

17.7.2 The Board shall establish appropriate internal reporting channels and procedures for receiving, assessing, investigating, and responding to whistleblower disclosures.

17.7.3 A person making a report in good faith shall not be subjected to intimidation, harassment, dismissal, demotion, threats, discrimination, or other detrimental treatment because they raised a genuine concern or participated lawfully in an investigation.

17.7.4 **Gotabgaa Australia Limited** shall take reasonable steps to protect the identity of a whistleblower and information likely to identify them, subject to applicable law, lawful disclosure requirements, and the need to investigate the disclosure fairly.

17.7.5 Reports may be made to Gotabgaa Australia Limited Secretary, President, an independent director, an authorised complaints officer, or another designated reporting recipient.

17.7.6 Where the complaint concerns the person ordinarily responsible for receiving reports, or where internal reporting is inappropriate, the whistleblower may use an alternative independent channel or report the matter to an appropriate external authority.

17.7.7 **Gotabgaa Australia Limited** shall assess reports promptly and impartially and shall take reasonable steps to protect relevant evidence, maintain appropriate confidentiality, and prevent interference with the investigation.

17.7.8 A person who makes a report shall not be required to prove the allegation before raising a genuine concern. However, knowingly making a materially false allegation or deliberately providing misleading information may constitute misconduct.

17.7.9 **Gotabgaa Australia Limited** shall ensure that persons implicated in a disclosure are treated fairly and are given an appropriate opportunity to respond, consistent with confidentiality, procedural fairness, and the requirements of any external investigation.

17.7.10 Where **Gotabgaa Australia Limited** is subject to the whistleblower protection provisions of the Corporations Act 2001 (Cth), those provisions shall prevail and shall be applied in accordance with the statutory requirements governing eligible whistleblowers, eligible disclosures, confidentiality, and protection against detrimental conduct.

17.7.11 This Article does not guarantee statutory whistleblower protection for every complaint or disclosure. The applicability of statutory protections depends on the relevant legislation and the circumstances of the disclosure.

17.7.12 The Board shall periodically review the effectiveness of whistleblower arrangements and ensure that reporting channels are communicated to the persons who may need to use them.

17.8 Disciplinary Action

17.8.1 A breach of this Constitution, the Code of Conduct, an applicable safeguarding policy, or another lawful policy of Gotabgaa Australia Limited may result in disciplinary action, subject to the nature and seriousness of the conduct, applicable law, and procedural fairness.

17.8.2 Disciplinary action may be considered in cases involving:

a) Fraud, corruption, theft, or misuse of **Gotabgaa Australia Limited** resources.

b) Failure to disclose or properly manage a material conflict of interest.

c) Harassment, bullying, discrimination, intimidation, or victimisation.

d) Abuse, exploitation, neglect, or safeguarding failures.

e) serious breaches of confidentiality or misuse of personal information.

f) Unauthorised representation of, or commitments made on behalf of, Gotabgaa Australia Limited.

g) Deliberate obstruction of an investigation or destruction of relevant evidence.

h) Retaliation against a complainant, whistleblower, witness, or person participating in a lawful investigation.

i) Repeated or serious failure to discharge constitutional responsibilities.

j) other conduct materially inconsistent with Gotabgaa Australia Limited 's lawful purposes, ethical standards, or governance obligations.

17.8.3 Depending on the circumstances, disciplinary measures may include:

a) Informal counselling or guidance.

b) A formal warning or written reprimand.

c) Mandatory training or corrective action.

d) Restriction or withdrawal of delegated responsibilities.

e) Temporary suspension from particular duties, subject to applicable law and the relevant appointment or employment arrangements.

f) Removal from a committee or other position where the authorised body has lawful power to do so.

g) Termination of employment or engagement in accordance with applicable law and contractual obligations.

h) Suspension or termination of membership in accordance with the membership provisions of this Constitution.

i) Referral to police, a regulator, a safeguarding authority, or another competent body where appropriate or required by law.

17.8.4 Before imposing a disciplinary sanction, Gotabgaa Australia Limited shall, except where immediate protective action is lawfully necessary, notify the person concerned of the material allegations and provide a reasonable opportunity to respond.

17.8.5 Disciplinary decisions shall be made by an impartial person or body authorised under this Constitution and Gotabgaa Australia Limited ’s applicable policies.

17.8.6 A person who is the subject of an allegation shall not determine the outcome of their own case or exercise improper influence over the investigation or decision.

17.8.7 Where a complaint concerns a director, national office bearer, or member of the Arap Tera Council, any suspension, removal, or other sanction shall be imposed only by the person or body authorised under this Constitution and applicable law.

17.8.8 Gotabgaa Australia Limited may take proportionate interim protective measures while an allegation is being assessed, provided that such measures are not treated as a final finding of misconduct and are implemented lawfully.

17.8.9 A disciplinary outcome shall be proportionate to the established conduct, relevant circumstances, risks to affected persons, previous findings where appropriate, and any applicable legal requirements.

17.8.10 The person concerned shall be informed of the decision and the reasons for it, subject to lawful confidentiality restrictions, and shall be provided with any internal review or appeal rights available under Gotabgaa Australia Limited ’s policies or this Constitution.

17.8.11 Disciplinary action shall not be imposed merely because a person made a complaint or whistleblower disclosure in good faith, exercised a lawful right, or participated honestly in an investigation.

17.8.12 Gotabgaa Australia Limited shall retain appropriate records of disciplinary proceedings and outcomes in accordance with applicable law, privacy requirements, and its records-management policy.

ARTICLE 18 — DISPUTE RESOLUTION

18.1 Internal Resolution

a) Any dispute arising between members, national office bearers, directors, committees, or the Council of Elders and Advisers (Arap Tera) concerning the interpretation of this Constitution, the conduct of Gotabgaa Australia Limited, or the exercise of organisational responsibilities shall, in the first instance, be addressed through good-faith internal discussions.

b) The parties shall endeavour to resolve the dispute amicably, with assistance from the President or another impartial person authorised by the Board, provided that the person is not involved in the dispute.

18.2 Mediation

a) Where internal resolution fails, the parties shall endeavour to resolve the dispute through mediation before pursuing further internal or external proceedings, unless urgent protective action or legal proceedings are necessary.

b) Mediation shall facilitate communication, mutual understanding, and a mutually acceptable resolution without improperly limiting any party's legal rights.

18.3 Traditional/Cultural Mediation

a) Where appropriate and acceptable to the parties, the dispute may be referred to the Council of Elders and Advisers (Arap Tera), or another mutually agreed cultural authority, for traditional or cultural mediation. Such mediation shall promote reconciliation, respect, unity, and restoration of relationships while remaining consistent with this Constitution, applicable Australian law, human rights, and the safety and dignity of all parties. Cultural mediation shall not be used to conceal criminal conduct, suppress safeguarding complaints, or compel a party to accept an unlawful or unsafe outcome.

18.4 Independent Mediation

a) Where internal or traditional mediation is unsuccessful, inappropriate, or affected by a conflict of interest, the parties may engage an independent and suitably qualified mediator by mutual agreement. If the parties cannot agree on a mediator, an appropriate independent mediation service may be approached to facilitate an appointment.

b) The costs of mediation shall be shared equally unless the parties agree otherwise or the mediator or applicable law provides a lawful alternative.

18.5 Procedural Fairness

a) All dispute-resolution processes shall be conducted impartially, confidentially to the extent permitted by law, and with respect for each party's right to be heard and respond to relevant allegations.

b) A person with a personal interest in the dispute shall not determine its outcome.

c) No party shall be subjected to intimidation, discrimination, retaliation, or unreasonable pressure, and any safeguarding concern, suspected criminal conduct, or matter requiring notification to an authority shall be referred through the appropriate lawful channels.

18.6 Final Determination

a) Where a dispute remains unresolved after reasonable attempts at mediation, it may be referred to the Board or another body authorised under this Constitution for determination, provided that the body is impartial and legally empowered to decide the matter.

b) Where the dispute concerns the Board, the President, or a person exercising authority over the matter, an independent process shall be used.

c) Any determination shall be recorded in writing, with reasons provided where appropriate, and shall be consistent with this Constitution and applicable Australian law.

d) Nothing in this Article shall prevent a party from exercising a statutory right to seek assistance from a regulator, tribunal, or court, or from taking urgent action to protect a person or preserve legal rights.

ARTICLE 19 — RECORDS, TRANSPARENCY AND ACCOUNTABILITY

19.1 Corporate Records

Gotabgaa Australia Limited shall maintain accurate, complete and up-to-date corporate records, including its Constitution, policies, resolutions, governance documents, contracts, official correspondence and other records necessary for effective administration and accountability.

19.2 Minutes

Minutes shall be kept of all General Meetings, Board meetings, committee meetings and other formal proceedings of Gotabgaa Australia Limited. The minutes shall record key discussions, decisions, resolutions, voting outcomes and declared conflicts of interest, and shall be confirmed and securely retained in accordance with applicable requirements.

19.3 Financial Records

Gotabgaa Australia Limited shall maintain proper financial records showing its income, expenditure, assets, liabilities, investments and financial commitments. All funds shall be managed transparently and responsibly, with appropriate internal controls, financial reporting and independent audit or review where required by law or authorised by Gotabgaa Australia Limited.

19.4 Register of Members

Gotabgaa Australia Limited shall maintain an accurate register of members, including the information required by law and this Constitution. The register shall be updated promptly following admissions, resignations, suspensions, removals or other changes in membership status.

19.5 Access to Records

Members and authorised office bearers may access Company records in accordance with this Constitution, applicable law and approved procedures. Access may be reasonably restricted where necessary to protect personal information, confidential matters, legal privilege, safeguarding information or legitimate commercial interests. Any refusal of access shall be consistent with applicable legal obligations.

19.6 Privacy

Gotabgaa Australia Limited shall collect, use, store, disclose and dispose of personal information responsibly and in accordance with applicable privacy and data-protection laws. Access to confidential records shall be limited to authorised persons, and appropriate measures shall be taken to protect records against loss, misuse, unauthorised access or disclosure.

19.7 Annual Reports

Gotabgaa Australia Limited shall prepare an annual report summarising its activities, achievements, governance, membership developments, significant decisions and financial position, as appropriate to its legal status and reporting obligations. The report shall be presented to members at the Annual General Meeting and made available to relevant stakeholders where authorised or legally required.

19.8 Regulatory Compliance

a) Gotabgaa Australia Limited shall comply with applicable Commonwealth, State and Territory laws, regulations, reporting obligations and lawful directions of relevant regulatory authorities.

b) The Board shall ensure that required records, financial statements, annual returns and other statutory documents are prepared, approved, lodged and retained within the prescribed timeframes.

c) Any material compliance failure shall be addressed promptly, with appropriate corrective action and reporting where required.

ARTICLE 20 — AMENDMENT OF THE CONSTITUTION

20.1 Proposed Amendments

a) An amendment to this Constitution may be proposed by the Board or by members entitled to do so under this Constitution and applicable law.

b) Every proposed amendment shall be submitted in writing, setting out the existing provision, the proposed change and the reasons for the amendment.

c) The Board shall review the proposal for consistency with Gotabgaa Australia Limited ’s objectives , not-for-profit status and legal obligations before it is submitted to members for consideration.

20.2 Notice

a) Notice of a proposed amendment shall be given to all members entitled to vote at the meeting where the amendment will be considered.

b) The notice shall include the full text or a clear description of the proposed amendment and state that a special resolution will be proposed.

c) The notice period, method of service and meeting procedures shall comply with the *Corporations Act 2001 (Cth)* and this Constitution.

20.3 Special Resolution

a) This Constitution may be amended only by a special resolution of Gotabgaa Australia Limited 's members, passed in accordance with the *Corporations Act 2001 (Cth)* and this Constitution.

b) A special resolution generally requires at least 75% of the votes cast by members entitled to vote on the resolution, subject to applicable statutory requirements.

c) No amendment shall authorise the distribution of Gotabgaa Australia Limited 's income or assets to members contrary to its not-for-profit status or applicable law.

d) An amendment affecting Gotabgaa Australia Limited 's objectives , membership rights, cultural identity, governance structure or winding-up provisions shall be considered carefully to ensure consistency with Gotabgaa Australia Limited 's purposes and legal obligations.

20.4 Lodgement with ASIC

a) Where required by the *Corporations Act 2001 (Cth)*, Gotabgaa Australia Limited shall lodge with the Australian Securities and Investments Commission (ASIC) a copy of the special resolution and any amended Constitution within the applicable statutory timeframe.

b) The Board shall ensure that the amended Constitution is recorded in Gotabgaa Australia Limited 's official records and made available to members as required by law.

c) An amendment shall take effect at the time prescribed by applicable law or specified in the resolution, provided that any required legal conditions have been satisfied.

ARTICLE 21 — DISSOLUTION AND WINDING UP

21.1 Winding Up

a) Gotabgaa Australia Limited may be wound up voluntarily or otherwise in accordance with the *Corporations Act 2001 (Cth)* and any other applicable Australian law.

b) A decision to wind up Gotabgaa Australia Limited shall be made through the required member resolutions and procedures, and all applicable statutory notices, lodgements and formalities shall be observed.

21.2 Payment of Debts

c) Upon the winding up of Gotabgaa Australia Limited, its assets shall be applied towards the payment of its debts, liabilities and costs of winding up in accordance with the *Corporations Act 2001 (Cth)*.

d) Creditors shall be paid in the order of priority prescribed by law, and Gotabgaa Australia Limited ’s directors and liquidator, where appointed, shall fulfil their respective statutory duties.

21.3 Distribution of Surplus Assets

a) After payment of all debts, liabilities and winding-up expenses, any surplus assets shall be dealt with in accordance with this Constitution and the *Corporations Act 2001 (Cth)*.

b) The surplus shall not be distributed to members merely because they are members of Gotabgaa Australia Limited.

21.4 Prohibition on Distribution to Members

Gotabgaa Australia Limited is established as a company limited by guarantee and shall operate on a not-for-profit basis. No surplus income or assets shall be distributed directly or indirectly to a member, director or national office bearer in their capacity as such, except for a payment expressly permitted by this Constitution and applicable law, including reimbursement of properly incurred expenses or reasonable payment for genuine services provided to Gotabgaa Australia Limited . No such payment shall constitute an entitlement to share in Gotabgaa Australia Limited ’s surplus assets.

21.5 Transfer to an Appropriate Not-for-Profit Organisation

Any surplus assets remaining after the satisfaction of all liabilities upon winding up shall be transferred to one or more organisations that:

a) are established and operate for charitable or other not-for-profit purposes consistent with the objectives of Gotabgaa Australia Limited;

b) prohibit the distribution of their income and assets to their members to at least the extent required of Gotabgaa Australia Limited; and

c) are legally eligible to receive the surplus assets under applicable Australian law.

The recipient organisation shall be selected by resolution of the members before or during the winding-up process, to the extent permitted by law. If the members do not select an eligible recipient, or the selected recipient cannot lawfully receive the assets, the surplus shall be dealt with in accordance with the *Corporations Act 2001 (Cth)* and any applicable court order.

No surplus assets shall be distributed to members of Gotabgaa Australia Limited, either directly or indirectly, upon winding up.

ARTICLE 22 — INTERPRETATION

22.1 Definitions

In this Constitution, unless the context otherwise requires:

a) **"Company"** means the Australian Guarantee Company established under this Constitution.

b) **"Board"** means the Board of Directors or other governing body legally responsible for the management and oversight of Gotabgaa Australia Limited.

c) **"Member"** means a person or entity admitted to membership in accordance with this Constitution.

d) **"National Office Bearers"** means the persons elected or appointed to the national leadership positions established under this Constitution.

e) **"Arap Tera Council"** means the Council of Elders and Advisers established under this Constitution to provide cultural, traditional and advisory guidance.

f) **"Constitution"** means this governing document, including any amendments lawfully adopted.

g) **"General Meeting"** means an Annual General Meeting or Special General Meeting of members convened in accordance with this Constitution.

h) **"Applicable Law"** means the laws, regulations and legally binding requirements applicable to Gotabgaa Australia Limited in Australia.

22.2 Interpretation

a) This Constitution shall be interpreted as a whole, giving effect to its objectives, governance principles and provisions.

b) Headings are included for convenience and shall not affect interpretation.

c) Words importing the singular include the plural and vice versa, and references to any gender include all genders.

d) The words "including" and "includes" shall not be interpreted as limiting the general meaning of the words preceding them.

e) Where a provision is ambiguous, it shall, where reasonably possible, be interpreted consistently with this Constitution's purposes and applicable Australian law.

22.3 Severability

a) If any provision of this Constitution is found to be invalid, unlawful or unenforceable by a competent court or regulatory authority, that provision shall be severed or limited to the extent

necessary, and the remaining provisions shall continue in force to the fullest extent permitted by law.

b) Gotabgaa Australia Limited shall take reasonable steps to consider and adopt a lawful replacement provision that most closely reflects the original intention.

22.4 Compliance with Australian Law

a) This Constitution shall operate subject to applicable Australian law. If any provision conflicts with a mandatory legal requirement, the mandatory requirement shall prevail to the extent of the inconsistency.

b) Gotabgaa Australia Limited shall take appropriate steps to amend or apply the relevant provision to ensure continued legal compliance, without unnecessarily affecting the operation of the remaining provisions.

22.5 Governing Law

a) This Constitution shall be governed by the laws of the Commonwealth of Australia and, where applicable, the laws of the State or Territory in which Gotabgaa Australia Limited is registered or principally governed.

c) The courts and competent tribunals of the applicable Australian jurisdiction shall have authority over matters arising under this Constitution, subject to applicable law.

ARTICLE 23 — TRANSITIONAL AND FOUNDING PROVISIONS

23.1 Founding Members

a) The founding members are the individuals or eligible organisations that formally establish the Australian Guarantee Company and participate in its registration in accordance with the *Corporations Act 2001 (Cth)*.

b) The founding members names and relevant details shall be recorded in Gotabgaa Australia Limited ’s founding documents and official records.

c) Founding membership shall not confer permanent control, additional voting rights or exemption from the obligations imposed by this Constitution, unless expressly permitted by this Constitution and applicable law.

23.2 Initial Directors

a) The initial Directors shall be appointed or consent to act in accordance with the requirements of the *Corporations Act 2001 (Cth)* and Gotabgaa Australia Limited ’s registration documents.
c) They shall exercise the powers and perform the duties of the Board from the date their appointments take effect.

d) The initial Directors shall ensure that Gotabgaa Australia Limited establishes appropriate governance procedures, financial controls, membership records, policies and regulatory compliance arrangements.

e) Subsequent appointments, elections and removals shall be governed by this Constitution.

23.3 Transitional Arrangements

a) Upon adoption of this Constitution and registration of Gotabgaa Australia Limited, the founding members and initial Directors shall take all reasonable steps necessary to establish Gotabgaa Australia Limited ’s lawful operations and implement its governance framework.

b) Existing founding committees, interim office bearers, working groups or administrative arrangements may continue temporarily where consistent with this Constitution and applicable law.

c) Any transitional arrangement shall cease or be replaced when the relevant permanent structure is established or by a date determined by the members or Board, as appropriate.

d) No transitional arrangement may override a mandatory legal requirement or the rights of members under this Constitution.

23.4 Recognition of Founding Members

a) Gotabgaa Australia Limited may formally recognise its founding members for their contributions to its establishment, cultural preservation, community development and organisational vision.

b) Such recognition may include certificates, acknowledgements in official publications or honorary recognition approved by the Board.

c) Recognition shall be honorary and shall not, by itself, confer additional governance powers, financial entitlements, permanent office, preferential voting rights or exemption from this Constitution.

d) All founding members shall remain subject to the same applicable governance, conduct and accountability requirements as other members, except where a lawful distinction is expressly provided in this Constitution.

ARTICLE 24 — ADOPTION

24.1 Adoption of Constitution

a) This Constitution is adopted as the governing document of the Australian Guarantee Company by its founding members in accordance with the applicable legal requirements and the procedures prescribed for its establishment.

b) Upon adoption, it shall guide Gotabgaa Australia Limited ’s governance, membership, leadership, operations, accountability and administration.

24.2 Founding Members’ Resolution

a) The founding members shall formally resolve to adopt this Constitution and authorise the necessary steps for Gotabgaa Australia Limited ’s registration, establishment and lawful operation.

b) The resolution shall be recorded in the minutes of the founding meeting and signed by the persons authorised to certify those minutes.

24.3 Effective Date

This Constitution shall take effect on the date it is lawfully adopted by the founding members or, where required by applicable law, on the date Gotabgaa Australia Limited is registered or the Constitution otherwise becomes legally effective. Any subsequent amendment shall take effect in accordance with the applicable law and the amendment procedures set out in this Constitution.

24.4 Certification

We, the undersigned authorised representatives of the founding members, certify that this Constitution was duly considered and adopted in accordance with the applicable procedures.

Name of Company: Gotabgaa Australia

Date of Adoption: _____

Place of Adoption: _____

Chairperson of Founding Meeting: _____

Signature: _____

Secretary of Founding Meeting: _____

Signature: _____

Witness, where required: _____

Signature: _____